



CHAPTER cv.

An Act to extend the boundaries of the borough of Dudley to authorise the mayor aldermen and burgesses of the borough to execute street works to confer further powers upon the Corporation with regard to the health local government and improvement of the borough and for other purposes. A.D. 1928.
—

[3rd August 1928.]

WHEREAS the borough of Dudley in the county of Worcester (in this Act called "the existing borough") is a county borough under the government of the mayor aldermen and burgesses thereof (in this Act called "the Corporation") and the Corporation acting by the council of the existing borough are the sanitary authority for the existing borough with the powers and obligations of an urban sanitary authority:

And whereas the unrepealed provisions of the local Acts specified in Part I of the First Schedule to this Act and of the Order specified in Part II of that schedule are in force in the existing borough:

And whereas the parish of Dudley Castle Hill and the urban district of Coseley are situate in the administrative county of Stafford and immediately adjoin the existing borough:

And whereas it is expedient to alter and extend the boundaries of the borough so as to include therein the said parish of Dudley Castle Hill and part of the urban district hereinbefore mentioned:

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— And whereas the existing borough is co-extensive with the parish of Dudley which forms part of the Dudley Union which union also includes the parish of Dudley Castle Hill and the urban district hereinbefore mentioned and it is expedient to alter and extend the boundaries of the parish of Dudley so as to include therein the areas added to the existing borough :

And whereas it is expedient to empower the Corporation to construct the street works authorised by this Act :

And whereas it is expedient to confer further powers upon the Corporation with reference to the acquisition of lands and also the retention disposal and development of lands acquired by them for and in connection with the execution of the street works authorised by this Act but not required for such works :

And whereas by an indenture dated the twenty-third day of November nineteen hundred and twenty-five and made between the Right Honourable William Humble Earl of Dudley of the one part and the Corporation of the other part the castle or ruin known as Dudley Castle together with the lands and grounds adjoining or adjacent thereto and together with certain other premises in the said indenture referred to were leased to the Corporation for a period of ninety-nine years from the twenty-ninth day of September nineteen hundred and twenty-four subject to the covenants and conditions contained in the said lease :

And whereas it is expedient to confirm the said indenture and authorise the same to be carried into effect and also to confer powers upon the Corporation with regard to the management of the said castle or ruin and other premises referred to in the said lease as in this Act provided :

And whereas it is expedient to make further and better provision with regard to the health local government and improvement of the borough and that the powers of the Corporation with regard thereto should be enlarged as is provided in this Act :

And whereas it is expedient to make further provision with regard to the finances of the Corporation and the application of revenue derived from their undertakings :

And whereas it is expedient that the other provisions contained in this Act should be enacted : A.D. 1928.

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

	£
The purchase of lands - - - - -	92,376
The construction of the street works authorised by this Act - - - - -	29,105

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the street works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Worcester and are hereinafter respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Dudley Corporation Act 1928.* Short title.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Borough extension.

Division of
Act into
Parts.

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- Part III.—Street works and lands.
 Part IV.—Dudley Castle and recreation grounds &c.
 Part V.—Streets buildings and drains.
 Part VI.—Infectious disease and sanitary matters.
 Part VII.—Police and hackney carriages.
 Part VIII.—Sale of coke.
 Part IX.—Financial.
 Part X.—Miscellaneous.

Incorporation of Acts.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exception and modification (namely):—

- (a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;
 (b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

Interpretation of terms.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“ The borough ” means the existing borough of Dudley as extended by this Act;

“ The Corporation ” means as the context requires the mayor aldermen and burgesses of the existing borough or of the borough acting by the council;

“ The council ” means the council of the borough;

“ The mayor ” “ the town clerk ” “ the treasurer ” “ the medical officer ” “ the sur-

veyor ” and “ the sanitary inspector ” mean A.D. 1928.
respectively the mayor the town clerk the
treasurer the medical officer of health the sur-
veyor and any sanitary inspector of the borough
and respectively include any person duly autho-
rised to discharge temporarily the duties of
those offices;

“ The local Acts ” means the local Acts specified in
Part I of the First Schedule to this Act the
Order specified in Part II of that schedule and
so much of the confirmation Act specified in
that Part as relates to that Order;

“ The county ” and “ the county council ” mean
respectively the administrative county of
Stafford and the county council of that county;

“ The appointed day ” means the first day of April
nineteen hundred and twenty-nine;

“ The general rate fund ” and “ the general rate ”
mean respectively the general rate fund and the
general rate of the borough or until the date
when the first new valuation list made under
Part II of the Rating and Valuation Act 1925
comes into force in the borough the borough
fund and borough rate of the borough;

“ The borough map ” means the map marked
“ Map of the Borough of Dudley as extended
by the Dudley Corporation Act 1928 ” and
signed in triplicate by Sir Thomas Robinson
the Chairman of the Committee of the House
of Commons to which the Bill for this Act was
referred one copy of which has been deposited
in the Parliament Office of the House of Lords
one in the Committee and Private Bill Office of
the House of Commons and one with the town
clerk at his office;

“ The Coseley District ” and “ the Coseley
Council ” mean respectively the urban district
of Coseley and the urban district council of
that district;

“ The added part of Coseley ” means the part of
the urban district and parish of Coseley which
is coloured brown on the borough map and

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- “ the excluded part of Coseley ” means the remaining part of that urban district;
- “ The added areas ” means the parish of Dudley Castle Hill (which is coloured purple on the borough map) and the added part of Coseley;
- “ The parish ” means the existing parish of Dudley as altered by this Act;
- “ The Dudley Union ” and “ the Dudley Guardians ” mean respectively the Dudley Poor Law Union and the board of guardians of that union;
- “ Existing ” in relation to any area altered by this Act means existing immediately before the appointed day;
- “ Local authority ” means a local authority as defined in section 3 of the Local Government and other Officers’ Superannuation Act 1922 and includes a standing joint committee of a county;
- “ Officer ” includes a servant and any person whose salary is paid by a local authority;
- “ The Minister ” means the Minister of Health;
- “ The Municipal Corporations Acts ” means the Municipal Corporations Act 1882 and the Acts amending and extending the same;
- “ The Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same and “ the Act of 1907 ” means the Public Health Acts Amendment Act 1907;
- “ The Act of 1888 ” “ the Act of 1894 ” and “ the Act of 1925 ” mean respectively the Local Government Act 1888 the Local Government Act 1894 and the Rating and Valuation Act 1925;
- “ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;
- “ The tribunal ” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this

Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919; A.D. 1928.
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- “ Dudley Castle ” means the castle or ruin known as Dudley Castle together with the land and grounds adjoining or adjacent thereto and other premises demised to the Corporation under the indenture referred to in the section of this Act of which the marginal note is “ Confirmation of scheduled deed ”;
- “ The Canal Company ” means the Company of Proprietors of the Birmingham Canal Navigations;
- “ Infectious disease ” means (except where otherwise stated) any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the borough;
- “ Child ” means a person under the age of sixteen years;
- “ Sunday school ” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;
- “ Food ” has the meaning assigned to it by section 26 (Definition of “ food ”) of the Sale of Food and Drugs Act 1899;
- “ Hackney carriage ” has the same meaning as in the Town Police Clauses Act 1847 and does not include an omnibus;
- “ Daily penalty ” means a penalty for each day on which an offence is continued by a person after conviction thereof;
- “ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34

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(Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“ Revenues of the Corporation ” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation;

“ Telegraphic line ” has the same meaning as in the Telegraph Act 1878.

PART II.

BOROUGH EXTENSION.

Commencement.

Commence-
ment of this
Part of Act.

5. This Part of this Act shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject matter or context inconsistent therewith come into operation on the appointed day :

Provided that for the purposes of all proceedings preliminary or relating to any election to be held for any area constituted or affected by this Act in the year nineteen hundred and twenty-nine this Part of this Act shall operate from the date of this Act.

Alteration of Borough Parishes and Counties.

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6.—(1) The boundary of the existing borough the area whereof is coloured blue on the borough map shall be altered so as to include in addition to that area—

—
Extension of
borough.

(a) the added part of Coseley; and

(b) the existing parish of Dudley Castle Hill.

(2) The boundary of the borough shall be that shown by the inner edge of the red line on the borough map and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the borough and shall be the county borough of Dudley for the purposes of the Act of 1888 and for all other purposes.

7. The added part of Coseley shall be separated from the existing parish bearing that name and with the existing parish of Dudley Castle Hill shall be added to and form part of the parish of Dudley in the Dudley Union.

Alteration
of parishes.

8.—(1) The boundary between the county of Worcester and the county of Stafford shall be altered so that the borough shall be wholly situate in the county of Worcester and the county borough of Dudley shall for the purposes of the Act of 1888 including the purposes of any commission of assize oyer and terminer or gaol delivery the service of jurors the making of jury lists sheriff lieutenant and militia be within the county of Worcester.

Alteration
of county
boundary.

(2) Lists of prisoners writs process and particulars and all records and documents relating to or to be executed in connection with any action or proceeding pending or existing at the appointed day and appertaining to the added areas shall be delivered turned over or transferred and signed in like manner in all respects so nearly as circumstances admit as is required to be done upon a new sheriff coming into office and as if the sheriff of the county of Worcester were as respects the added areas the new sheriff in succession to the sheriff of the county.

9.—(1) Copies of the borough map deposited with the town clerk certified by him to be true shall be sent as soon as may be to the clerk of the county council to the

Borough
map.

A.D. 1928. clerk of the Worcester County Council to the clerk to the Coseley Council to the clerk to the Dudley Guardians to the Commissioners of Customs and Excise to the Board of Inland Revenue to the Registrar-General to the Postmaster-General to the Board of Trade to the Minister to the Minister of Transport and to the Minister of Agriculture and Fisheries.

(2) Copies of or extracts from the borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the borough and of the parish and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the general rate fund.

Provisions consequent on Alterations.

Council and
wards.

10. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of the number and boundaries of wards and the number of councillors the following provisions shall have effect:—

- (a) The number of councillors and aldermen of the borough shall be unaltered;
- (b) For the purposes of the election of councillors the borough shall be divided into seven wards;
- (c) The existing municipal wards (other than the Castle Ward and the Saint Edmund's Ward) and the number of councillors assigned to those wards respectively shall remain unaltered and the councillors representing those wards at the date of this Act shall continue to represent the same until they would go out of office in the ordinary course;
- (d) So much of the added part of Coseley as lies to the west of the centre line of the road known as Priory Road shall be included in the Castle Ward and the councillors representing that ward immediately before the appointed day

shall be deemed on and after that day and until they would go out of office in the ordinary course to represent that ward as altered by this section;

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- (e) So much of the added areas as comprises the existing parish of Dudley Castle Hill and so much of the added part of Coseley as lies to the east of the centre line of the road known as Priory Road shall be included in the Saint Edmund's Ward and the councillors representing that ward immediately before the appointed day shall be deemed on and after that day and until they would go out of office in the ordinary course to represent that ward as altered by this section.

11. For the purposes of the application to the borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added areas shall be deemed to have always formed part of the borough.

County and
Borough
Councils
(Qualifica-
tion) Act
1914.

12. The added areas shall be separated from any county electoral division of which they respectively form part and any person who immediately before the appointed day is a county councillor representing any such division shall be deemed to have been elected to represent that division as altered by this Act and shall retire on the date on which he would have retired if this Act had not been passed.

County
electoral
divisions.

13. The persons who hold office immediately before the appointed day as the mayor and the aldermen of the existing borough shall on the appointed day become the mayor and aldermen of the borough and shall respectively retire from office on the day on which they would have retired from office if this Act had not been passed.

Mayor and
aldermen.

14.—(1) The powers and duties of the quarter sessions recorder clerk of the peace and coroner of the existing borough and of the justices of the peace for the existing borough and of the clerk to those justices and of the police constables and other peace officers of the existing borough shall extend to and apply throughout the borough:

Jurisdiction
of borough
justices &c.
extended.

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Provided that—

- (a) Every person committing an offence in any part of the added areas prior to the appointed day shall be tried and dealt with as if this Act had not been passed;
- (b) Every proceeding which prior to the appointed day has been begun by or before any justice or any coroner in relation to any matter arising in or concerning any part of the added areas may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

(2) The added areas shall cease to form part of any petty sessional division of the county.

Officers of
Corporation
continued.

15. The town clerk and all other officers of the Corporation of the existing borough who hold office at the appointed day shall continue to be the town clerk and officers of the Corporation of the borough and shall hold their offices by the same tenure as on the appointed day.

Borough
auditors.

16. The auditors of the existing borough who are in office on the appointed day shall continue in office and shall for the purposes of the Municipal Corporations Acts be the borough auditors until the next ordinary day of election of borough auditors.

Corporation
property.

17. Subject to the provisions of this Act all property vested in the Corporation at the appointed day for the benefit of the existing borough (not being property held on any charitable trust) shall by virtue of this Act be held by the Corporation for the benefit of the borough and the Corporation shall hold enjoy and exercise for the benefit of the borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing borough and all liabilities which on the appointed day attach to the Corporation in respect of the existing borough shall from and after that day attach to them in respect of the borough.

Mortgage
debts of
Corporation.

18. Subject to the provisions of this Act and to any necessary adjustment so much of any sums borrowed by the Corporation as will at the appointed day be owing

and charged upon a fund or rate levied within the existing borough shall be charged upon the corresponding fund or rate to be levied within the borough and shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable. A.D. 1928.
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19.—(1) Subject to the provisions of this Act the unrepealed provisions of the local Acts and of any other local Act or Provisional Order affecting the existing borough or the Corporation as the same respectively are in force within the existing borough on the appointed day shall extend and apply to the borough and any reference therein to the existing borough and the Corporation shall be deemed to refer to the borough and the Corporation thereof. Provided that nothing in this Act shall alter the area for the supply of electricity under the Dudley Corporation Electric Lighting Order 1897. Local Acts.

(2) The provisions of any protective enactment for the benefit of the county council or the Coseley Council (or the predecessors of either such council) contained in any local Act confirmation Act or Provisional Order (by whomsoever obtained) shall in respect of all matters relating to or affecting any part of the added areas enure to the benefit of the Corporation and shall be construed as if a reference to the Corporation were substituted for any reference to such council (or their predecessors) as the case may be.

20.—(1) The provisions of—

- (a) The Baths and Washhouses Acts 1846 to 1925;
- (b) The Public Improvements Act 1860;
- (c) The Infectious Disease (Prevention) Act 1890;
- (d) Parts III and IV of the Public Health Acts Amendment Act 1890;
- (e) The Museums and Gymnasiums Act 1891;
- (f) The Public Libraries Acts 1892 to 1919;
- (g) The Notification of Births Act 1907; and
- (h) Parts II III IV and V of the Public Health Act 1925;

Adoptive
Acts.

A.D. 1928. shall be in force in and apply to the borough as if the same had been adopted for the borough.

(2) The provisions of any adoptive Act other than the enactments mentioned in subsection (1) of this section shall cease to be in force in any part of the added areas.

(3) Any order under the Infectious Disease (Notification) Act 1889 or under any adoptive Act mentioned in subsection (1) of this section which is in force at the appointed day throughout the existing borough shall extend and apply to the added areas and any such order in force on the appointed day in the added areas shall save as hereinbefore provided cease to be in force in those areas.

(4) The provisions of subsections (2) and (3) of this section shall not prejudice or affect any proceedings which are pending on the appointed day.

Powers
under Act
of 1907 and
Public
Health Act
1925.

21. Subject to any order which the Minister or the Secretary of State may make on or after the appointed day the following provisions shall have effect as regards orders under the Act of 1907 or the Public Health Act 1925:—

(1) The provisions of any order made before the appointed day and declaring to be in force throughout the existing borough any parts or sections of the Act of 1907 shall have effect as if any reference in that order to the existing borough extended and applied to the borough and as if the said parts or sections were accordingly declared to be in force in the borough:

(2) Any other order under either of the said Acts which is in force immediately before the appointed day throughout the existing borough shall extend and apply to the added areas:

(3) The provisions of any order made before the appointed day and declaring to be in force in any part of the added areas any parts or sections of either of the said Acts shall cease to apply to any such part and the parts or sections declared by any such order to be in force shall save as hereinbefore provided cease to be in

force in any such part but this provision shall not prejudice or affect any proceedings which are pending on the appointed day. A.D. 1928.
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22.—(1) The powers duties and liabilities of a parish council under section 14 (Public property and charities) of the Act of 1894 conferred upon the Corporation by order of the Local Government Board dated the thirtieth day of August nineteen hundred and seven shall be deemed to have been conferred upon the Corporation in respect of the area comprising the existing parish of Dudley. Powers under sections 14 and 33 of Act of 1894.

(2) An order may be made by the Minister under section 33 of the Act of 1894 with respect to any charity held wholly or partly for the benefit of the inhabitants of any existing parish affected by this Act as if this Act had not been passed.

23. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the appointed day in any area affected by this Act shall subject to the provisions of such Acts remain in force and apply to the area to which it applies immediately before the appointed day. Orders under Shop Hours Act 1904 or Shops Acts 1912 to 1920.

24. Any order under the Wild Birds Protection Acts 1880 to 1908 which is in force at the appointed day in the existing borough shall extend to the added areas and any order under those Acts which is then in force in the county shall cease to extend to the added areas. Orders under Wild Birds Protection Acts.

25.—(1) All byelaws made under the Public Health Acts and in force within the existing borough or within the added areas immediately before the appointed day shall— As to bye-laws &c.

(a) if made before the first day of January nineteen hundred and fifteen continue to apply to the existing borough or to the added areas as the case may be for one year after the appointed day (unless previously repealed or altered by the Corporation) but shall on the expiry of one year cease to be in force within the borough;

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(b) if made on or after the first day of January nineteen hundred and fifteen continue to apply to the existing borough or to the added areas as the case may be until repealed or altered by the Corporation.

(2) Any such byelaws in force in the existing borough may by a byelaw made in accordance with sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority be extended with or without modification to the added areas.

(3) All other byelaws made by the Corporation or by the watch committee of the existing borough and in force immediately before the appointed day shall apply to the borough until repealed or altered and all byelaws made by the county council or the standing joint committee shall on that day cease to apply within the added areas.

(4) In their application to the added areas any byelaws continued in force by this section shall have effect as if they had been made by the Corporation and as if the added areas were referred to therein instead of the area to which they now apply.

(5) Any proceedings which if this Act had not been passed might have been taken for any offence against any byelaw committed before the appointed day within the added areas may be taken by the Corporation.

(6) In this section "byelaws" includes any regulation scale of charges list of tolls or table of fees or payments and the phrase "byelaws made under the Public Health Acts" means byelaws which under the Ministry of Health Act 1919 are subject to confirmation by the Minister whether made before or after the passing of that Act.

Education
byelaws.

26. Any byelaws under the Education Act 1921 or any enactment repealed by that Act which may be in force in the existing borough immediately before the appointed day shall apply to the borough until revoked or altered by the Corporation in substitution for any such byelaws which may be in force in the added areas.

27. All poor law orders in force immediately before the appointed day in the Dudley Union and applicable to the existing parish of Dudley shall extend and apply to the parish.

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As to exist-
ing poor
law orders.

28.—(1) The clerk of the county council shall before the appointed day send the town clerk of the borough a copy of every entry in the register of the county council under the Nursing Homes Registration Act 1927 which relates to any nursing home situate within the added areas and the town clerk shall include in the register of the Corporation under that Act the particulars furnished by the clerk of the county council.

Register of
nursing
homes.

(2) Any exemption in force immediately before the appointed day from the operation of Part II of the Midwives and Maternity Homes Act 1926 or the Nursing Homes Registration Act 1927 which may have been granted by the county council in respect of premises within the added areas shall continue in force until the exemption shall expire or if the exemption is not limited as to time until the exemption shall be withdrawn by the Corporation.

29.—(1) The Staffordshire Wolverhampton and Dudley Joint Committee for Tuberculosis Order 1913 as amended by the Staffordshire Wolverhampton and Dudley Joint Committee for Tuberculosis Order 1924 shall be altered so that the borough shall be a constituent area and the Corporation shall be a constituent authority within the meaning of the first named Order.

Joint com-
mittee for
tubercu-
losis.

(2) Until the population of the borough is shown in the returns of the last census for the time being the number of inhabitants of the borough according to the returns of the last census prior to the issue of precepts of the Staffordshire Wolverhampton and Dudley Joint Committee for Tuberculosis for contributions to their common fund shall be estimated by the clerk to the joint committee from the returns of such last census.

30.—(1) The South Staffordshire Joint Small-pox Hospital Orders 1903 to 1925 and the Acts confirming those Orders shall be altered so that the borough shall be a constituent district of the South Staffordshire Joint Small-pox Hospital District.

Joint small-
pox hos-
pital dis-
trict.

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(2) Until the population of the borough is shown in the returns of the last census for the time being the number of inhabitants of the borough according to the returns of the last census prior to the issue of precepts of the South Staffordshire Joint Small-pox Hospital Board for contributions to their common fund shall be estimated by the clerk to the joint board from the returns of such last census.

Stafford-
shire mental
hospitals
district.

31. The added areas shall cease to form part of the district of the Staffordshire Mental Hospitals Board constituted by the Staffordshire Asylums Act 1922.

Insurance
committees.

32.—(1) The Minister may by order at any time after the passing of this Act make such provisions as appear to him to be necessary for transferring to the insurance committee for the borough such of the property rights and liabilities of the insurance committee for the county as relate to persons resident in the added areas.

(2) An order made under this section may authorise the insurance committee for the county to continue to act as insurance committee for the added areas until such date not being later than the thirtieth day of June nineteen hundred and twenty-nine as may be specified in the order and may for that purpose postpone the operation of this Act so far as relates to the rights and duties of the respective insurance committees for the county and borough until the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister necessary or expedient.

(3) An order under this section shall have effect as if enacted in the National Health Insurance Act 1924 and may be revoked revised or amended by an order made in like manner as the original order.

(4) Subject to any order under this section the persons who immediately before the appointed day are members of the respective insurance committees for the county and the existing borough shall be deemed to have been appointed or elected as and shall be the members of the respective insurance committees for the county as altered by this Act and the borough.

33.—(1) The Corporation shall be the burial board for the borough and shall have within the borough to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906 Provided that no approval sanction or authorisation of the vestry of the parish of Dudley shall be required in respect of any act of the Corporation as the burial board.

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Burial Acts.

(2) Nothing in this Act shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired prior to the appointed day or prejudicially affect any right privilege or authority which immediately prior thereto is exerciseable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906.

34. The county council the Coseley Council and the parish meeting of the parish of Dudley Castle Hill shall cease to exercise any powers or discharge any duties within any part of the added areas.

Powers of
county and
Coseley
councils and
parish meet-
ing &c.

35.—(1) Subject to any necessary adjustment all property or liabilities which immediately before the appointed day are vested in or attach to the Coseley Council in relation exclusively to the added part of Coseley shall by virtue of this Act be transferred to and vest in the Corporation as urban authority.

Property
&c. of
Coseley
Council.

(2) Any property or liabilities vested in or attaching to the Coseley Council in relation to the added part of Coseley conjointly with any other area shall be a matter for adjustment under section 62 of the Act of 1888.

36.—(1) The parish shall for the purposes of the election of guardians be divided into seven wards which shall be respectively co-terminous with and shall bear the same numbers and names as the wards into which the borough is divided for the purposes of the election of councillors by this Act.

Division of
parish into
wards.

(2) The wards of the parish shall respectively be represented by the same number of guardians as the wards of the existing parish which bear the same names and the guardians representing the wards of the existing parish shall unless disqualified respectively represent the

A.D. 1928. wards of the parish which bear the same names until they retire from office in the ordinary course.

Existing
guardians
and district
councillors.

37. The persons who immediately before the appointed day are district councillors and guardians for the Coseley District and the parish of Coseley shall be deemed to have been elected as and shall be the urban district councillors and guardians for that district and parish as altered by this Act and shall continue in office until the dates on which they would have retired if this Act had not been passed.

Differential
rating.

38.—(1) The Minister may if he thinks fit on the application of a local authority or of any railway or canal company owning property in the added areas and after considering any representations that may be made to him by the Corporation order that for the period or periods stated in the order the total amount in the pound of the general rate to be made and levied upon rateable hereditaments situate in either of the added areas shall be less than the total amount in the pound of the general rate to be made and levied upon hereditaments within the area of the existing borough by such sum or sums as may seem equitable to him.

(2) Any application under subsection (1) of this section shall be made in writing before the expiration of two months from the passing of this Act.

(3) For the purposes of this section "a local authority" means the Coseley Council and the parish meeting of the parish of Dudley Castle Hill.

Supplementary Provisions.

Adjustment
of financial
relations
between
county and
county
borough.

39.—(1) In any case where the extension of the existing borough by this Act affects the distribution between the county the borough and any other county borough of the moneys payable out of the local taxation account or by the Postmaster-General in pursuance of the Act of 1888 of the Local Taxation (Customs and Excise) Act 1890 and of the Roads Act 1920 (as amended by any subsequent Act and as affected by any Order in Council) or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution or financial relations or

questions equitable adjustments may be made between the areas interested. A.D. 1928.

(2) Any such adjustment as is authorised by subsection (1) of this section may be made by agreement between the councils affected or by an arbitrator appointed by those councils and unless such adjustment has been made or an arbitrator has been so appointed before the thirty-first day of December nineteen hundred and twenty-nine then on the application of any of the councils interested the Minister may if he thinks fit make or appoint an arbitrator to make the adjustment.

(3) In any case in which an agreement for equitable adjustments as aforesaid has not been made or so far as any such agreement does not extend the provisions of the Act of 1888 relating to adjustments between administrative counties and county boroughs shall apply with the necessary modifications and the Minister or an arbitrator appointed under subsection (2) of this section as the case may be shall be substituted in those provisions for the commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Act or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Minister be deemed to be made by him otherwise than as an arbitrator and any arbitrator appointed under subsection (2) of this section shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly :

Provided that—

- (a) in lieu of subsection (6) of section 61 of the Act of 1888 subsections (1) and (5) of section 87 of that Act shall apply to any inquiries which may be directed by the Minister under this section and to the costs of those inquiries; and
- (b) subsection (6) of section 32 of the Act of 1888 shall apply to any agreement or award made under this section.

40.—(1) An equitable adjustment shall be made between the county and the borough respecting the

Adjustment
for purposes
of licensing.

A.D. 1928. interest of the added areas in any compensation fund constituted under section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

(2) Such adjustment shall be made by agreement between the compensation authority (as defined by the Licensing (Consolidation) Act 1910) for the county and for the borough within twelve months from the appointed day or such extended period as may be allowed by the Secretary of State or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

Adjustment
as to pro-
perties.

41. In any adjustment between the Corporation and any council or other authority which may be made in consequence of this Act regard shall be had to the interest or share (if any) of the added areas in any property which is retained by or transferred to such council or other authority if—

(a) such council or other authority will thereby be relieved from providing accommodation; or

(b) prior to the appointed day such property was subject to beneficial user by the inhabitants of the added areas; or

(c) such property or some part thereof is realisable; and due credit shall be given in such adjustment to the Corporation in respect of such interest or share (if any).

Adaptation
of provisions
as to adjust-
ment.

42. Section 62 of the Act of 1888 shall apply to any adjustment which may become necessary in consequence of this Act and for the purposes of such application that section shall have effect—

(a) As if in subsections (5) (6) and (7) thereof the expression "council" included any authority affected by this Act or by anything done in pursuance of this Act; and

(b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned

in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction; A.D. 1928.

(c) As if the general rate were substituted for any fund mentioned in that section; and

(d) As if the following subsection were added to the section :—

(8) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part only of a parish the agreement or award may authorise such sum to be levied in that part as an additional item of the general rate.

43.—(1) On the appointed day such members (if any) of the police force of the county as before that day shall have been determined by agreement subject to the approval of the Secretary of State between the standing joint committee of the county and the watch committee of the Corporation or in default of agreement by the Secretary of State shall be transferred to and become part of the police force of the borough. Provided that no member of the police force of the county shall be so transferred without his consent. County police.

(2) Every member of the police force of the county so transferred shall hold office in the police force of the borough upon the same tenure and subject to the same terms and conditions as the other serving members of the police force of the borough of the same rank as such member and any period of service which the transferred member was entitled to reckon before the transfer for purposes of pay promotion or pension in the police force of the county shall be reckoned for the same purpose in the police force of the borough :

A.D. 1928.

Provided that where the scale of ordinary pensions applicable to a member of the police force of the county who is so transferred is by virtue of section 29 (1) (a) of the Police Pensions Act 1921 a scale other than that prescribed in Part I of the First Schedule to that Act such scale shall continue to apply to him as if he had not been so transferred.

(3) The provisions of subsection (2) of section 8 of the Police Pensions Act 1921 shall extend and apply to and in relation to any member of a police force transferred under this section as if that member had removed with the written sanction of the chief constable of the county and notwithstanding that at the date of the transfer that member may not have completed one year's approved service in the police force of the county.

Compensa-
tion to
existing
officers.

44.—(1) Every officer in office on the date of the passing of this Act who by virtue of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by determination of his appointment or by diminution or loss of fees salary wages or emoluments (and for whose compensation no other provision is made by any enactment for the time being in force) shall be entitled to compensation for that loss from the Corporation.

(2) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Act regard shall be had to the conditions and circumstances mentioned in subsection (1) of section 120 of the Act of 1888 and the compensation shall not exceed the limit therein mentioned.

(3) Any compensation payable under this Act to any officer shall be paid out of the general rate fund and the general rate and the provisions of section 120 of the Act of 1888 shall apply subject to the following and any necessary modifications:—

(a) Any reference in that section to the county council shall be construed as a reference to the Corporation and in subsection (7) of that section for the words "the same or any other county council" there shall be substituted the words "any local authority as defined in the "Local Government and other Officers' Super-

“ annuation Act 1922 ” and in that subsection the expression “ office ” shall be deemed to include employment; A.D. 1928.

(b) References in that section to “ the passing of this Act ” shall be construed as references to the date on which the abolition of office or determination of appointment takes effect or the direct pecuniary loss commences as the case may be;

(c) The expression in subsection (1) of that section “ the Acts and rules relating to Her Majesty’s Civil Service ” shall mean the Acts and rules relating to Her Majesty’s Civil Service which were in operation at the date of the passing of the Act of 1888; and

(d) The references in subsections (4) and (6) of that section to the Treasury shall be deemed to be references to the Minister.

(4) The compensation payable under this Act to an officer who on the date of the passing of this Act shall hold two or more offices under any local authority or local authorities and who shall have devoted the whole of his time to the duties of such offices shall not be reduced by reason of the fact that he has devoted only part of his time to each of such offices.

For the purposes of this subsection the following offices shall be deemed to be offices under a local authority (namely) clerk to an assessment committee constituted under the Act of 1925 superintendent registrar registrar of births and deaths and registrar of marriages.

(5) In computing the time of service in any capacity of any officer for the purpose of determining the compensation to which he is entitled under this Act the Corporation shall take into account all the service of any such officer (after he has attained the age of eighteen years) in any capacity under any local authority whether such officer has been appointed annually or otherwise.

(6) All fees or remuneration received by an officer in connection with the preparation of the jurors’ book or the register of electors shall subject to a reasonable deduction for any expenses incurred by the officer be regarded as part of the emoluments of the officer for the purpose of compensation.

A.D. 1928.
—

(7) If any officer was temporarily absent from his employment during the war whilst serving in His Majesty's forces or the forces of the allied or associated powers either compulsorily or with the sanction or permission of the local authority such period of temporary absence shall be reckoned as service under the local authority in whose employment he was immediately before and after such temporary absence:

Provided that in the case of an officer who after the armistice voluntarily extended his term of service with the forces no period of absence during such extension shall be so reckoned.

(8) The Corporation may in their discretion and in consideration of the fact that any officer was appointed to his office as a specially qualified person or of the fact that he had prior to his appointment served as a deputy assistant or clerk to any officer not holding a temporary appointment add any number of years (not exceeding ten) to the number of years which such officer would otherwise be entitled to reckon for the purpose of computing the compensation to which he would be entitled under the Acts and rules relating to Her Majesty's Civil Service as applied by this Act.

(9) The foregoing provisions of this section shall apply to a teacher employed in a public elementary school maintained by the local education authority at the passing of this Act as if he were an officer employed by the authority. Provided that in the case of a teacher employed in a public elementary school maintained but not provided by the authority the provisions with respect to an officer whose services are dispensed with shall only apply if such teacher be discharged by the authority or by the direction or with the consent of the authority (otherwise than for misconduct) within five years after the appointed day.

(10) In the application of subsection (7) of section 120 of the Act of 1888 in the case of a teacher to whom a compensation allowance has been granted in pursuance of this section service in a public elementary school maintained but not provided by a local authority shall be deemed to be service in an office under that authority.

45. No officer shall be entitled to receive compensation under this Act for pecuniary loss and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

A.D. 1928.

—
Compensation and
superannuation.

46.—(1) As soon as practicable after the appointed day the county council and the Coseley Council shall as regards any cash balance in their hands at the appointed day estimate the proportion thereof derived from contributions paid by each of the added areas and subject to a deduction on account of undischarged liabilities in respect of that added area accruing up to the appointed day shall transfer such amount to the Corporation.

Apportionment of
balances and sums
received under pre-
cepts.

(2) Any sum received after the appointed day by the county council or the Coseley Council under a precept issued or rate made before that day in respect of any area comprising one of the added areas shall be dealt with in the manner prescribed by subsection (1) of this section.

(3) The apportionment under this section of any balance or sum received shall be subject to review on an adjustment under this Act.

47.—(1) Any balances standing at the appointed day in the books of the Dudley Guardians to the credit or debit of the existing parishes of Dudley and Dudley Castle Hill shall be carried to the credit or debit of the parish.

Balances in
accounts of
guardians
&c.

(2) Any balances standing at the appointed day in the books of the Coseley Council or of the Dudley Guardians to the credit or debit of the existing parish of Coseley shall be matters for adjustment under section 62 of the Act of 1888.

48.—(1) The registration officer of the parliamentary borough of Wolverhampton shall supply the registration officer of the parliamentary borough of Dudley on publication with a sufficient number of copies of the electors' lists the lists of objections to the electors' lists the lists of claimants and the lists of objections to claimants for each registration unit comprising any part of the added areas which is included in the parliamentary borough of Wolverhampton and shall forthwith notify the registration officer of the parliamentary

Duplicate
entries in
electors
lists.

A.D. 1928. borough of Dudley of his decisions on any objections or
— claims in respect of any such registration unit.

(2) It shall be the duty of the registration officer of the parliamentary borough of Dudley to issue such notices and otherwise to take such steps as are required by rule 23 in the First Schedule to the Representation of the People Act 1918 in order to secure that no person is registered as a local government elector in respect of more than one qualification in the borough for the purpose of borough council elections or in any ward of the parish of Dudley for the purpose of guardians' elections.

(3) Where the registration officer of the parliamentary borough of Dudley considers (whether on account of an expression of choice by a person affected by a duplicate entry or otherwise) that any correction required for the purpose aforesaid should be made in the electors' lists of any registration unit comprising any part of the added areas which is within the parliamentary borough of Wolverhampton he shall forthwith notify the registration officer of that parliamentary borough and that officer shall make such correction accordingly.

(4) This section shall apply to the preparation of the register in nineteen hundred and twenty-nine and of later registers.

Provisions
as to register
of electors.

49.—(1) For the purposes of the register of local government electors of the borough prepared in the years nineteen hundred and twenty-eight and nineteen hundred and twenty-nine and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have formed part of the borough as from the twenty-eighth day of February nineteen hundred and twenty-eight.

(2) In the preparation of the register of local government electors in the year nineteen hundred and twenty-eight so far as it relates to any area affected by this Act it shall be competent to the registration officer to frame the register in separate parts for each area which will constitute a registration unit on and after the appointed day instead of in separate parts for each area constituting a registration unit before the appointed day.

(3) If the register of local government electors for any local government electoral area affected by this Act is not so framed as to show the persons entitled to vote at an election to be held for a district parish or ward or other voting area— A.D. 1928.

(a) the town clerk in the case of an election for any voting area within the borough; and

(b) the registration officer of the parliamentary borough of Wolverhampton in the case of an election for any voting area outside the borough

shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

(4) It shall be the duty of the town clerk and of any officer designated under article 3 of the Overseers Order 1927 by the Corporation or by the Coseley Council for the performance of the duties of overseers in relation to the preparation of the register of electors to render such assistance as may be required by any registration officer for the purpose of any alteration or re-arrangement authorised by subsection (3) of this section.

(5) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary or desirable to give effect to the provisions of this Act and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

50.—(1) Every person who at any time before the appointed day has acquired or who immediately before that day is in the course of acquiring a settlement in any existing parish affected by this Act by reason of residence birth or other qualification in any part of the added areas shall be deemed to have acquired or to be in the course of acquiring thereby a settlement in the parish as if the added areas had always been parts of the parish. Settlement and removal of poor.

(2) For the purposes of this section consecutive periods of residence in any portions of an existing parish divided by this Act shall be aggregated and reckoned as continuous residence in that part of the existing parish in which the person was residing immediately before the appointed day.

A.D. 1928.

—
Application
of Act of
1925.

51.—(1) As from the date of this Act the person who immediately before that date is the representative of any part of the added areas on the assessment committee constituted under the County of Stafford (Assessment Areas and Assessment Committees) Scheme 1926 shall cease to represent that part which shall thenceforward be represented by persons appointed by the Corporation in pursuance of the said scheme as amended by this Act.

(2) For the purposes of the preparation revision and approval of a new valuation list for the added areas to come into force on the appointed day the provisions of this Act shall for the purposes of Part II (Valuation) of the Act of 1925 be deemed to come into operation as from the date of the passing of this Act and as from the said date the Corporation shall have as the rating authority of the borough in respect of the added areas to the exclusion of any other rating authority all the powers conferred upon a rating authority by Part II of the Act of 1925.

(3) For the purposes of any appeal against a decision of the assessment committee upon an objection to the first new valuation list the added areas shall be deemed to be within the jurisdiction of the court of quarter sessions for the existing borough.

(4) For the purposes of any valuation list to be prepared under the Act of 1925 the amount of the deduction to be made from net annual value in the ascertainment of the rateable value of such rateable hereditaments within the added areas as are included in class (3) of the hereditaments specified in column (1) of Part II of the Second Schedule to that Act shall be thirty-four per centum.

(5) From and after the said date all rating authorities boards of guardians and other local authorities and the assessment committee above referred to shall give to the Corporation as the rating authority of the borough any assistance and information which the Corporation may require for the purpose of enabling them to discharge their functions under Part II of the Act of 1925.

(6) The Rating and Valuation (Dudley Castle Hill) Order 1927 is hereby repealed.

52. For the purpose of summoning jurors and of jury service any parish affected by this Part of this Act shall be deemed to continue unaltered until a new jurors' book comes into force.

A.D. 1928.

—
Jury
service.

53. Subject to the provisions of this Act—

Dudley
Castle Hill
parish
meeting.

- (1) Any powers and duties transferred by or under the Act of 1894 to the parish meeting of the existing parish of Dudley Castle Hill shall be vested in and imposed on the Corporation :
- (2) Any property or liabilities held or incurred by the parish meeting of the said existing parish or by the representative body constituted by article 7 of the Overseers Order 1927 for such existing parish shall by virtue of this Act be transferred to vest in and attach to the Corporation :
- (3) Any property or liabilities held or incurred by the parish meeting of the said existing parish or by the representative body constituted as aforesaid for that existing parish conjointly with any other area shall by virtue of this Act be transferred to vest in and attach to the Corporation but shall be a matter for adjustment under section 62 of the Act of 1888 :
- (4) (a) The accounts (if any) of the parish meeting for the existing parish of Dudley Castle Hill shall be audited by the district auditor in like manner and subject to the like incidents and consequences as if this Act had not been passed ;
(b) Any sum certified by the district auditor to be due from any person at the audit of the accounts to which this subsection applies shall be paid to the treasurer.

54.—(1) All rate books books of account minutes of proceedings deeds papers and writings belonging to the existing parish of Dudley Castle Hill and all documents directed by law to be kept with the public books writings and papers of that parish except any book or document relating to ecclesiastical matters shall be deposited in such custody as the Corporation may direct.

Parish
books and
documents.

A.D. 1928.

(2) Any ratepayer of the said existing parish shall at all times have the same right of inspection and of making extracts from the books minutes deeds papers or writings referred to in this section which he would have had if this Act had not been passed.

Arrears of
rates in
added areas.

55. Subject to any adjustment all rates not collected at the appointed day and levied by any rating authority upon any hereditament situate in any part of the added areas shall be collected and recovered by the Corporation.

References
to Educa-
tion Act
1921.

56. Any reference in this Act to the provisions of the Education Act 1921 shall as respects any provision of that Act which may not be in operation at the appointed day be construed as a reference to the corresponding provision of the Education Acts 1870 to 1919 until such corresponding provision is repealed by the Education Act 1921.

Land
Charges
Act 1925.

57.—(1) The local registrars for the county for the Coseley District and for the existing parish of Dudley Castle Hill under the Land Charges Act 1925 and the rules made thereunder shall within one month after the appointed day supply to the local registrar for the borough an office copy of every entry in the local land charges register relating to any premises situate within the added areas and shall be paid by the Corporation in respect thereof such fees as are prescribed by the said rules.

(2) The local registrar for the borough shall within one month after the receipt of the office copies mentioned in subsection (1) of this section enter the same with any necessary modifications in the appropriate parts of the local land charges register of the borough.

(3) Until the entries are made as aforesaid or until the expiration of two months from the appointed day whichever be the earlier the following provisions shall have effect in respect of all land in the added areas:—

(a) The local registrar for the borough shall give notice to any person desiring to make a personal search that an additional search should be made in the register for the urban or rural district affected and in the register for the county;

- (b) Where application is made for an official search the local registrar for the borough shall issue free of charge a certificate of official search in the register of the borough and shall forward to the local registrar for the district affected the application received by him together with the fees paid in respect thereof and shall also forward to the local registrar for the county a copy of the application; A.D. 1928. —
- (c) The local registrars for the districts which include the added areas and the local registrar for the county shall permit and make such searches and furnish such office copies and certificates as they would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as if this Act had not been passed;
- (d) The fees in respect of searches permitted or made and in respect of certificates furnished by the local registrar for the county in pursuance of the provisions of paragraph (c) of this subsection shall be paid by the Corporation;
- (e) Where a local land charge duly registered in the local land charges register of the county or of the district is in pursuance of this Act transferred from the county council or the district council to the Corporation such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the local land charges register of the borough.

58.—(1) No alteration effected by this Act shall cause to abate prejudicially affect or prevent any action cause of action or proceeding which at the appointed day is pending or existing by or against the Coseley Council or any contract deed bond agreement or other instrument (subsisting at the appointed day) entered into or made by that council or their predecessors: Savings for actions contracts &c.

Provided that—

- (a) Any action cause of action or proceeding which at the appointed day is pending or

A.D. 1928.

existing by or against the Coseley Council in relation exclusively to the added part of Coseley may be continued prosecuted and enforced by or against the Corporation; and

- (b) All contracts deeds bonds agreements and other instruments (subsisting at the appointed day) entered into or made by the Coseley Council (or their predecessors) in relation exclusively to the added part of Coseley may be continued and enforced as fully and effectually as if instead of such council (or their predecessors) the Corporation had been a party thereto.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this Act.

Saving for
qualification
of aldermen
councillors
&c.

59. An alderman councillor or guardian who is to continue in office after the appointed day shall not during his present term of office be deemed to lose his qualification by reason of the alterations of areas made by this Act.

Saving for
contribution
orders and
precepts.

60. Notwithstanding the alterations in the areas of parishes or districts effected by this Act all contribution orders issued and precepts made before the appointed day shall be as valid in law as if this Act had not been passed.

Saving pro-
visions.

61.—(1) Nothing contained in this Act shall—

- (a) be construed as restricting the powers of the Minister under the Acts relating to the relief of the poor or the powers of the Secretary of State the Minister, the county council or the Corporation under the Act of 1888 or the Act of 1894;

- (b) affect the limits of the parliamentary borough of Dudley or of the parliamentary borough of Wolverhampton or of any division thereof or the powers of the council of the borough of Wolverhampton under section 31 (Division of constituency into polling districts and appointment of polling places) of the Representation of the People Act 1918 or any order

A.D. 1928.

or scheme made by the council of the borough of Wolverhampton for the division of the said parliamentary borough of Wolverhampton into polling districts and the appointment of polling places for parliamentary elections;

(c) affect the ecclesiastical divisions of any parish or prejudice, vary or affect any right interest or jurisdiction in or over any charitable endowment;

(d) (save as in this Act expressly provided) affect the provisions of the Act of 1925;

(e) affect land tax.

(2) For the purposes of Imperial taxes or duties other than land tax the provisions of the section in this Part of this Act whereof the marginal note is "Alteration of parishes" shall not come into operation during any year in which under any enactment the annual value of any property adopted for the purpose of income tax under Schedules A and B for the preceding year is taken as the annual value of that property for the same purpose for that year.

PART III.

STREET WORKS AND LANDS.

62.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street works hereinafter mentioned together with all necessary or proper works and conveniences connected therewith or incident thereto and may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the construction of such street works or for the purpose of providing space for the erection of buildings adjoining or near thereto or for other the purposes of this Part of this Act.

Power to
construct
street
works.

(2) The street works hereinbefore referred to and authorised by this Act will be situate in the borough and are—

Work No. 1 A widening and improvement of
Priory Road on the north-easterly side thereof;

A.D. 1928.
—

Work No. 2 A widening and improvement of New Street on the south-westerly side thereof and of Tower Street on the north-westerly side thereof;

Work No. 3 A further widening and improvement of New Street on the south-westerly side thereof;

Work No. 4 A widening and improvement of New Street on the north-easterly side thereof and of Castle Street on the westerly side thereof;

Work No. 5 A widening and improvement of King Street on the northerly side thereof;

Work No. 6 A widening and improvement of King Street on the southerly side thereof;

Work No. 7 A widening and improvement of Vicar Street on the easterly side thereof and of King Street on the southerly side thereof;

Work No. 8 A widening and improvement of New Mill Street on the westerly side thereof;

Work No. 9 A widening and improvement of New Mill Street on the easterly side thereof and of King Street on the southerly side thereof.

Limits of
deviation.

63. In the construction of the works authorised by this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding five feet either upwards or downwards.

Power to
make sub-
sidiary
works.

64.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation in connection with and for the purposes of this Part of this Act and as part of the works to be executed under the powers of this Act may execute or do any of the following works or things (namely):—

(a) Make junctions and communications with any existing streets intersected or interfered with by or contiguous to the works authorised by this Part of this Act or any of them and may divert widen or alter the line or alter the level of any

existing street for the purpose of connecting the same with any of such works; A.D. 1928.

- (b) Raise lower or alter any vault arch cellar or area under or adjoining any roadway or footway but so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit;
- (c) Execute any works for the protection of any adjoining land or buildings;
- (d) Execute any works and do any things necessary for the strengthening and supporting of any walls of adjoining buildings; and
- (e) Raise lower alter and interfere with any drain sewer channel or gas or water main or pipe or electricity wire or apparatus within the said limits providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus;

and shall make compensation for any damage done by them in the execution of the powers of this section.

(2) Provided that the Corporation shall not raise lower alter or otherwise interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

65.—(1) Notwithstanding anything contained in this Act or shown upon the deposited plans the following provisions shall unless otherwise agreed in writing between the Corporation and the vicar or the Corporation and the vicar and churchwardens (as the case may be) have effect (that is to say):—

For protec-
tion of
vicar and
church-
wardens of
Dudley.

- (a) The Corporation shall not under the powers of this Act otherwise than in accordance with the terms of the agreement dated the eleventh day of July nineteen hundred and twenty-eight and made between the vicar of the one part and the Corporation of the other part acquire any part of the lands numbered 14 on the deposited plans in relation to Work No. 5 authorised by the section of this Act of which

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the marginal note is "Power to construct street works" and if the Corporation shall under the said powers acquire any part of such lands they shall comply with the terms of the said agreement;

(b) The Corporation shall not under the powers of this Act otherwise than in accordance with the terms of the agreement dated the eleventh day of July nineteen hundred and twenty-eight and made between the vicar and churchwardens of the one part and the Corporation of the other part acquire any part of the lands numbered 79 and 80 on the deposited plans in relation to Work No. 6 authorised by the section of this Act of which the marginal note is "Power to construct street works" and if the Corporation shall under the said powers acquire any part of any such lands they shall comply with the terms of the said agreement:

Provided that nothing in this subsection shall prevent the Corporation from acquiring the rights or interests of any party other than the vicar and churchwardens in any part of the lands referred to in paragraphs (a) and (b) of this subsection.

(2) In this section—

"the vicar" means the Reverend Canon Arthur Henry Phelps as vicar of Dudley or his successor for the time being in that office;

"the churchwardens" means Wilfred Shuttleworth and Percy Stanley Blaker or other the churchwardens for the time being of Saint Thomas's Church in King Street Dudley.

For protec-
tion of Shrop-
shire Worces-
tershire and
Staffordshire
Electric
Power
Company.

66. Nothing in this Part of this Act shall authorise any interference with electric lines and works of the Shropshire Worcestershire and Staffordshire Electric Power Company to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

For protec-
tion of Town
of Dudley

67. Notwithstanding anything contained in this Part of this Act the following provisions for the protection of the Town of Dudley Gas Light Company (in this

section called " the company ") shall (in addition to any other provisions enuring for the protection of the company) unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say) :—

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Gas Light
Company.

- (1) In this section " apparatus " means and includes all or any mains pipes syphons tubes fittings or other apparatus belonging to the company and " authorised work " means any work authorised by this Part of this Act :
- (2) Before commencing to execute any authorised work in any street or road in which any apparatus is laid which authorised work will be within ten feet of such apparatus the Corporation shall give fourteen days' notice to the company of their intention to execute such work and shall at the same time deliver to the company for their reasonable approval a plan and section of such authorised work and such work shall not be executed except in accordance with such plan and section as may be so approved or as determined by arbitration under this section. Provided that in the event of such plan and section not being objected to within fourteen days from the receipt thereof they shall be deemed to have been approved by the company. The Corporation shall also if required to do so by the company give them any such further information in relation to such authorised work as they may reasonably require :
- (3) If it should appear to the company that the execution of such authorised work as proposed would interfere with or endanger any such apparatus or interfere with the access thereto or impede the supply of gas the company may within a period of fourteen days from the receipt by the company of the notice referred to in subsection (2) of this section give notice to the Corporation to alter the position of such apparatus in such manner as may be reasonably necessary and any difference as to the necessity of any such alteration or the manner of carry-

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ing out the alteration shall be settled by arbitration under this section and all such alterations shall save as hereinafter provided be carried out by and at the expense of the Corporation with as little detriment and inconvenience to the company as the circumstances will admit and to the reasonable satisfaction of the engineer of the company and under his superintendence if he thinks fit to attend after receiving not less than three days' notice for that purpose which notice the Corporation are hereby required to give:

- (4) The Corporation in executing any authorised work shall not remove or displace any apparatus or do anything to endanger such apparatus or impede the passage of gas into or through any apparatus or interfere with the access thereto without the consent of the company or in any other manner than the company shall approve until good and sufficient apparatus and other works necessary or proper for continuing the supply of gas as sufficiently as the same was supplied by the apparatus proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and ready for use and to the reasonable satisfaction of the engineer of the company:
- (5) Whenever by reason of the exercise by the Corporation of the powers of this Part of this Act any apparatus (other than apparatus for which new apparatus has been substituted by or at the expense of the Corporation under the provisions of this section) shall be rendered derelict useless or unnecessary the Corporation shall forthwith pay to the company such a sum as may be agreed between the Corporation and the company or as failing such agreement may be determined by arbitration as hereinafter provided to be the then value of such apparatus as apparatus and such apparatus shall thereupon become the property of the Corporation and in addition to such payment the Corporation shall pay to the

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company the reasonable cost of and incidental to the cutting off of any such derelict useless or unnecessary apparatus from any other apparatus of the company and of and incidental to any other works or things rendered necessary or expedient in consequence of such apparatus being rendered derelict useless or unnecessary by the exercise by the Corporation of the powers of this Part of this Act :

- (6) Whenever by reason of the exercise by the Corporation of the powers of this Part of this Act any replacement of old apparatus by new apparatus or any addition to existing apparatus shall be rendered reasonably necessary the Corporation at their own expense shall provide all such apparatus of a quality equal to that replaced or added to and lay and connect the same in such position as may be reasonably required by the company to the reasonable satisfaction of the engineer of the company and in such manner as not to cause without the consent in writing of the company any interruption in the continuous supply of gas by the company :
- (7) The Corporation in executing any authorised work shall make good all damage done by them to any apparatus and shall make full compensation to the company for any loss (other than loss of revenue) damage costs or expenses which they may sustain by reason of any interference with such apparatus or the access thereto or with the private service pipes of any person supplied by the company with gas :
- (8) If the company shall desire to execute the works connected with any alteration of position removal displacement or renewal of or necessary additions to any apparatus under this section or shall desire to provide such new or additional apparatus and shall give not less than seven days' notice in writing thereof to the Corporation before they commence the works the company may themselves carry out the works and provide such apparatus and all reasonable expenses properly incurred by them

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in connection with the works or provisions of apparatus shall be repaid to them by the Corporation :

- (9) If any difference shall arise with respect to any matter under this section between the Corporation and the company or their respective engineers the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party (after notice thereof in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration. In settling any question under this section an arbitrator shall have regard to any duties or obligations which the company may be under in respect of their apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the company's apparatus is used.

For protection of
South
Staffordshire Water-
works Com-
pany.

68. Notwithstanding anything contained in this Act the following provisions for the protection of the South Staffordshire Waterworks Company (in this section called "the company") shall unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say) :—

- (1) In this section "apparatus" means and includes all or any mains pipes syphons tubes fittings or other apparatus belonging to the company and "authorised work" means any work authorised by this Part of this Act :
- (2) Before commencing to execute any authorised work in any street or road in which any apparatus is laid which authorised work will be within three feet of such apparatus the Corporation shall give to the company not less than fourteen days' notice in writing of their intention to execute such work and shall at the same time deliver to the company for their reasonable

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approval a plan and section of such authorised work and such work shall not be executed except in accordance with such plan and section as so approved or as determined by arbitration under this section. Provided that in the event of such plan and section not being objected to within fourteen days from the receipt thereof they shall be deemed to have been approved by the company. The Corporation shall also if required to do so by the company give them any such further information in relation to such authorised work as they may reasonably require :

- (3) If it should appear to the company that the execution of such authorised work as proposed would interfere with or endanger any such apparatus or interfere with the access thereto or impede the supply of water the company may within fourteen days from the receipt by them of the notice by the Corporation give notice to the Corporation to alter the position of such apparatus in such manner as may be reasonably necessary and any difference as to the necessity of any such alteration or the manner of carrying out the alteration shall be settled by arbitration under this section and all such alterations shall save as hereinafter provided be carried out by and at the expense of the Corporation with as little detriment and inconvenience to the company as the circumstances will admit and to the reasonable satisfaction of the engineer of the company and under his superintendence if he thinks fit to attend after receiving not less than three days' notice for that purpose which notice the Corporation are hereby required to give :
- (4) The Corporation in executing any authorised work shall not remove or displace any apparatus without the consent of the company or in any other manner than the company shall approve until good and sufficient substituted apparatus and other works necessary or proper for continuing the supply of water as sufficiently as the same was supplied by the apparatus proposed

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to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and be ready for use to the reasonable satisfaction of the engineer of the company :

(5) Whenever by reason of the exercise by the Corporation of the powers of this Part of this Act any apparatus (other than apparatus for which new apparatus has been substituted by or at the expense of the Corporation under the provisions of this section) shall be rendered derelict useless or unnecessary the Corporation shall forthwith pay to the company such a sum as may be agreed between the Corporation and the company or as failing such agreement may be determined by arbitration as hereinafter provided to be the then value of such apparatus as apparatus and such apparatus shall thereupon become the property of the Corporation and in addition to such payment the Corporation shall pay to the company the reasonable cost of and incidental to the cutting off of any such derelict useless or unnecessary apparatus from any other apparatus of the company and of and incidental to any other works or things rendered necessary in consequence of such apparatus being rendered derelict useless or unnecessary by the exercise by the Corporation of the powers of this Part of this Act :

(6) The Corporation in executing any authorised work shall make good all damage done by them to any apparatus and shall make full compensation to the company for any loss (other than loss of revenue) damage costs or expenses which they may sustain by reason of any interference with such apparatus or the access thereto or with the private service pipes of any person supplied by the company with water :

(7) If the company shall desire to execute the works connected with any alteration of position removal displacement or renewal of or necessary additions to any apparatus under this section and shall give not less than seven days' notice

in writing thereof to the Corporation before they commence the work the company may themselves carry out the work and all reasonable expenses properly incurred by them in connection with the works or provision of apparatus shall be repaid to them by the Corporation :

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- (8) If any difference shall arise with respect to any matter under this section between the Corporation and the company or their respective engineers the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party (after notice in writing thereof to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

69.—(1) The Corporation during the execution of the powers of this Part of this Act may break up and also temporarily stop up divert and interfere with any street for the purpose of executing such powers and may for any reasonable time prevent all persons other than those *bonâ fide* going to or returning from any house in the street from passing along and using the same.

Temporary
stoppage of
streets.

(2) The Corporation shall provide reasonable access for foot passengers *bonâ fide* going to or returning from any such house.

70. Any paving metalling or material excavated by the Corporation in the construction of any works authorised by this Part of this Act from any road under their jurisdiction and control shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit.

Application
of road
materials
excavated
in construc-
tion of
works.

71. All lands acquired by the Corporation under this Act and laid into or appropriated as part of any street shall form part of that street and shall be maintained and repaired in all respects as the rest of that street is for the time being by law maintained and repaired,

Land laid
into streets
to form
part thereof.

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Correction
of errors &c.
in deposited
plans and
book of
reference.

72. If there is any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the borough for the correction thereof and if it appears to the justices hearing the application that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the borough and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Corporation may take the lands in accordance with such certificate.

Period for
compulsory
purchase of
lands.

73. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the thirty-first day of October nineteen hundred and thirty-three.

Persons
under dis-
ability may
grant ease-
ments &c.

74. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Extinction
of private
rights of
way.

75.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall be extinguished as from the date of the acquisition of such lands by the Corporation

if the Corporation shall by resolution so determine and give notice in writing of such their resolution to the owner of any right of way referred to therein. A.D. 1928.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any rights extinguished under the provisions of this section and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

76. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the fifteenth day of November nineteen hundred and twenty-seven if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary or was made or created with a view to obtaining or increasing compensation under this Act. Compensation in case of recently acquired interest.

77. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings. Power to enter upon property for survey and valuation.

78. In estimating the amount of compensation or purchase money to be paid by the Corporation in respect of the acquisition under this Act of any part of the lands of any person the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are continuous with such adjoining lands arising out of the widening or improvement of any street or arising through such adjoining lands becoming lands fronting on any such street shall be Benefits to be set off against compensation.

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Owners may
be required
to sell parts
only of
certain
premises.

79.—(1) Whereas in the construction of the works authorised by this Act or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (a) The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter in this section included in the term “ the owner ” and the said properties are hereinafter referred to as “ the scheduled properties ”;
- (b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise;
- (c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment

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thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed;

- (d) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal;
- (e) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner;
- (f) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice;
- (g) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any

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such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed on every notice given thereunder to sell and convey any of the scheduled properties.

Removal
of human
remains.

80.—(1) If and when the Corporation shall acquire any portion of the burial grounds of the church and chapel known respectively as St. Thomas's Church in King Street Dudley and the New Street Baptist Chapel Dudley or either of them they shall before applying or using any part of such portion for any of the purposes of this Act remove or cause to be removed the remains of all deceased persons interred in the portion so acquired of such burial grounds.

(2) Before proceeding to remove any such remains the Corporation shall publish a notice for three successive days in two local newspapers circulating in the borough to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) (7) and (9) of this section.

(3) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the said burial grounds may give notice in writing to the Corporation of his intention to undertake the removal of such remains and thereupon

he shall be at liberty to cause such remains to be removed to and re-interred in any burial ground or cemetery in which burials may legally take place. A.D. 1928.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Corporation that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner in the case of St. Thomas's Church by the registrar of the consistory court of the diocese of Worcester and in the case of the New Street Baptist Chapel by the registrar of the county court of Worcester holden at Dudley and the registrar who determines the question shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of fifteen pounds) shall be defrayed by the Corporation such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Corporation in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section the Corporation may remove the remains of the deceased person and cause them to be re-interred in the same or such other burial ground or cemetery in which burials may legally take place as the Corporation think suitable for the purpose.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Corporation be removed and re-erected at the place of re-interment of such remains or at such place within the borough as in the case of St. Thomas's Church the bishop of the diocese of Worcester and in the case of the New Street Baptist Chapel the registrar of the said county court may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Corporation and the Corporation shall cause to be made a record of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each

A.D. 1928. — monument and tombstone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer.

(9) In the application of this section to the burial ground of St. Thomas's Church the following provisions in addition to or (where necessary) instead of the foregoing provisions shall apply:—

(a) The said remains may be removed without any faculty for the purpose but such removal shall be subject to any regulations made by the bishop of the diocese of Worcester;

(b) The burial ground or cemetery in which the said remains are re-interred shall be a consecrated one and if the said remains are re-interred by the Corporation the burial ground or cemetery shall be one approved by the said bishop.

As to user
of burial
ground.

81. If and when the Corporation shall have acquired the burial ground of St. Thomas's Church in King Street Dudley or any portion thereof and all the human remains found therein or in such portion thereof shall have been removed therefrom or from such portion thereof in accordance with the provisions of the last preceding section of this Act the said burial ground or such portion thereof (as the case may be) shall be freed and discharged from all trusts users obligations disabilities and restrictions whatsoever heretofore attached thereto under ecclesiastical law or otherwise as the burial ground or such portion thereof (as the case may be) of St. Thomas's Church aforesaid and notwithstanding anything contained in the Disused Burial Grounds Act 1884 or any other enactment it shall be lawful for the Corporation to sell lease or otherwise dispose of the same or any part thereof in like manner as if no part thereof had ever been used or set apart for the purpose of burial.

Agreements
with owners
of property
&c.

82. Subject to the provisions of this Act the Corporation may in connection with the powers granted to them by this Act enter into and carry into effect agreements with any person being the owner of or interested

in any lands or property abutting on any portion of the works by this Act authorised with respect to the sale or purchase by the Corporation of any lands or property (including any street or thoroughfare or any part of a street or thoroughfare appropriated by the Corporation under the powers of this Act and not required for the said works) or any rights or easements in on or affecting the same for such consideration as may be agreed upon between the Corporation and such person and the Corporation may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or other property required by them for the purposes of this Act.

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83.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the Corporation may retain hold and use for such time and for such purpose as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the borough (other than the Housing Acts 1890 to 1923) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Retention
and disposal
of lands.

Provided that the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained:

Provided also that nothing in this section shall be taken to dispense with the consent of any Government department to any sale lease appropriation or other disposition of any lands of the Corporation in any case in

A.D. 1928. — which such consent would have been required if this Act had not been passed.

(2) Nothing in this section contained shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Proceeds of
sale of
surplus
lands.

84.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act (other than lands acquired under the section of this Act of which the marginal note is “ Further powers for the acquisition of land ”) in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister.

(2) Provided that—

- (a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by or under this Act for the purpose of such purchase;
- (b) the borrowing powers conferred by or under this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

85.—(1) The Corporation may purchase or take on lease dwelling-houses and other buildings for persons employed by them for the purposes of their several undertakings and offices and other buildings for those purposes and may erect fit up maintain and let any such buildings upon any lands for the time being belonging to the Corporation for the purposes of the said undertakings and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for those purposes.

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Dwelling-
houses for
persons in
Corpora-
tion's em-
ployment.

(2) Nothing contained in this section shall empower the Corporation to create or permit a nuisance.

86.—(1) The Corporation may lay out and develop any lands acquired by them under the powers of this Act and not required for the purposes of the works authorised by this Act and (with the consent of the Minister) any other lands belonging to the Corporation and not required for the purposes for which they were acquired and may erect and maintain houses shops offices warehouses and other buildings and construct sewer pave flag channel and kerb streets roads and ways on any of such lands and may sell lease exchange or otherwise dispose of any such lands houses shops offices warehouses or buildings upon and subject to such terms conditions and restrictions as they may think fit.

Power to
develop
lands &c.

(2) The Corporation may also grant building leases of any such lands as aforesaid subject to such restrictions and conditions as the Corporation may see fit to impose and may grant any easements rights or privileges in under or over such lands or any part or parts thereof and may use or dispose of the building or other materials of any houses and premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

(3) The Corporation in selling or disposing of such lands may attach to the same and may convey the same subject to any conditions and restrictions upon the use thereof and as to the buildings to be erected thereon and as to the use to which such buildings may be put.

(4) The Corporation may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired under the provisions of this Act

A.D. 1928. — or which may be in the neighbourhood of the works by this Act authorised or any of them with respect to the reinstatement of such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

(5) The Corporation shall not (unless the Minister otherwise direct) sell lease exchange or otherwise dispose of any of the lands to which this section applies except at the best price or on the best terms which can be obtained for the same but a purchaser or lessee shall not be concerned to inquire whether the direction of the Minister is necessary or has been obtained.

(6) Nothing in this section shall be taken to dispense with the consent of any Government department to any sale lease appropriation or other disposition of any lands of the Corporation in any case in which such consent would have been required if this Act had not been passed.

Further
powers for
the acquisition
of land.

87.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any money so borrowed shall be repaid within such period as may be prescribed by the Minister.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the general rate fund and general rate.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands

but as to capital moneys so received and not so applied the Corporation shall apply the same either— A.D. 1928.

- (a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister; or
- (b) in such other manner as may be approved by the Minister.

PART IV.

DUDLEY CASTLE AND RECREATION GROUNDS &C.

88. The indenture made the twenty-third day of November nineteen hundred and twenty-five between the Right Honourable William Humble Earl of Dudley of the one part and the Corporation of the other part which is set forth in the Third Schedule to this Act is hereby confirmed and made binding on the parties thereto and effect may and shall be given thereto accordingly. Provided that the said indenture shall have effect subject always to the existing rights of the Canal Company in relation to their canal and canal tunnel on under and through the Dudley Castle grounds referred to in the said indenture. Confirmation of scheduled deed.

89. The existing power of the Corporation of making byelaws for securing good and orderly conduct in their public parks and pleasure grounds shall extend to the making of byelaws for securing good and orderly conduct in Dudley Castle (during the continuance of the indenture referred to in the last preceding section of this Act) and also during any concert recital entertainment exhibition or amusement provided or carried on in pursuance of the provisions of the Public Health Act 1925. Power to make bye-laws.

90. From and after the passing of this Act every police constable shall have the same power of enforcing byelaws made by the Corporation under the Public Health Act 1875 or under this Part of this Act relating to Dudley Castle or to any park or place of public resort or recreation ground under the control of the Corporation as is given to the servants of the Corporation by the byelaws for the time being in force under the provisions of the Public Health Act 1875. Power of constables to enforce byelaws as to parks &c.

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Power to
provide and
let public
buildings
&c.

91. The Corporation may—

- (1) Provide or acquire or may (subject to the approval of the Minister) on any lands of which for the time being they may be the owners or lessees (subject to any restrictive covenant or to the provisions of any lease affecting the same) or on lands to be acquired by them for the purpose erect and construct or allow to be erected and constructed and hold furnish equip maintain insure and carry on concert halls public halls pavilions band-stands assembly rooms and other public buildings with all necessary and suitable offices committee rooms entertainment rooms reading rooms shelters ante-rooms refreshment rooms kitchens cloak rooms lavatories conveniences and appurtenances and may for any such purposes maintain alter adapt extend or otherwise deal with existing buildings for the time being belonging or leased to the Corporation and may provide erect and maintain shops and offices as part of any such building or buildings :
- (2) For the purpose of erecting constructing providing and maintaining any such buildings as aforesaid purchase or take upon lease or otherwise acquire lands by agreement but nothing in this section shall authorise the Corporation to create or permit the creation or continuance of any nuisance on any such lands :
- (3) Grant or let with or without charge the use of the whole or any part of any buildings acquired or constructed by them under the powers of this section for the purpose of any public or other meetings or any musical or other entertainments or for other purposes approved by the Corporation on such terms and conditions as they may think fit.

Pro-
grammes.

92. The Corporation may provide programmes of any concert entertainment athletic meeting exhibition or performance which may from time to time be provided by the Corporation or with their sanction or towards the expenses of which they may contribute in any public

park or pleasure ground in the borough or in Dudley Castle and may sell such programmes or may authorise any person or persons to provide and sell such programmes. A.D. 1928.
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93. The Corporation may in any year pay or contribute towards the cost of providing and maintaining at public places in the borough and on tramcars and omnibuses plying in the borough or between the borough and other places and in newspapers published in the counties of Worcestershire and Staffordshire advertisements of the concerts and entertainments provided by them or towards which they may contribute in any public park or pleasure ground in the borough or in Dudley Castle or in any enclosure pavilion or other building in such park or ground or in Dudley Castle or in the public offices or swimming baths of the Corporation. Power to advertise entertainments and attractions.

94. All moneys from time to time received by the Corporation in respect of the exercise of their powers under this Part of this Act shall be carried to and shall form part of the general rate fund and all payments and expenses made and incurred in respect of the exercise of those powers shall be paid out of the general rate fund and the general rate. As to receipts and expenses.

PART V.

STREETS BUILDINGS AND DRAINS.

95.—(1) Whenever application shall be made to the Corporation to approve the laying out of or notice shall be given to the Corporation of intention to lay out a new street within the meaning of the byelaws of the Corporation with respect to new streets or of any statutory provision for the time being in force in the borough with respect to the width of new streets the Corporation may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Corporation with plans and particulars showing the general scheme (if any) for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on Development scheme may be required in connection with new streets.

A.D. 1928. — which plans and particulars required as aforesaid shall be so furnished.

(2) If after the submission of the plans and particulars referred to in subsection (1) of this section the Corporation shall approve the laying out of any such new street either unconditionally or subject to any modification of such plans and particulars neither the owner of the estate or lands nor his successors in title shall carry out the development of such estate or lands in such a manner as to conflict substantially with such plans and particulars as approved and if any such owner shall offend against the provisions of this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The said owner may at any time submit to the Corporation for their approval any alteration in the said plans and particulars and the Corporation may if they think fit approve such alteration.

(4) (a) Any person deeming himself aggrieved by any requirement of or by the Corporation under this section or by any modification required in the said plans and particulars by the Corporation or by any refusal on the part of the Corporation to approve any such alteration as aforesaid therein may within fourteen days from the date of such requirement or of the intimation to him by the Corporation of such refusal appeal to a court of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court shall seem just.

(b) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court of summary jurisdiction may direct.

(5) Nothing in this section shall be deemed to authorise any contravention of any byelaw or statutory provision in force in the borough.

Agreements
with respect
to streets
adjoining
borough
boundary.

96.—(1) On and from the first day of January nineteen hundred and twenty-nine the Corporation on the one hand and the local or road authority having jurisdiction in any area adjoining the borough on the other hand may enter into and carry into effect agreements for and with respect to the making widening improvement maintenance repair sweeping cleansing lighting or watering of any street or road along which the boundary of the borough runs.

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(2) For the purpose of carrying into effect any such agreement any party thereto shall subject to the provisions of the agreement have with respect to any street or road or part thereof outside their jurisdiction all the powers and be subject to all the obligations and liabilities of the party to the agreement within whose jurisdiction the street or road or part thereof are situate and such first-mentioned party may bear or contribute towards the cost of the making widening improvement maintenance repair sweeping cleansing lighting or watering of such street or road or part thereof and apply the like funds and rates and exercise the like powers of borrowing money upon the security of rates or otherwise in all respects as though such street or road or part thereof had been within their jurisdiction.

(3) Any such agreement as aforesaid may be carried into effect notwithstanding the provisions of any order relating to any street or road or part thereof referred to in the agreement and made under the Highway Act 1835 or under any Act repealed or superseded by that Act and where any such street or road or part thereof is widened or otherwise altered pursuant to any such agreement as aforesaid the order shall (unless and except so far as may be otherwise provided by the agreement) extend and apply to the street or road or part thereof as so widened or altered.

97.—(1) The Corporation may enter into and carry into effect agreements with any owner of lands adjoining any street within the borough for the adjustment of the boundary of any such street and for such purpose may give up to such owner land including land forming part of the street in exchange for other land For the purposes of this section the Corporation shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section.

Adjustment
of bound-
aries of
streets.

(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in some local newspaper circulating in the borough and if during such period of one month any four inhabitant householders of the borough by themselves or their agent give notice to the Corporation of

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their intention to appeal under the provisions of this section the Corporation shall not proceed with their proposals (unless the notice of appeal is withdrawn) pending a decision on or a withdrawal of the appeal. The advertisement in the newspaper shall include notice of this proviso.

(3) Any four inhabitant householders of the borough may appeal to a court of summary jurisdiction against any proposal of the Corporation for an adjustment of the boundaries of a street under this section within the period mentioned in subsection (2) of this section.

(4) On any such appeal the court may make such order in the premises and on such terms and conditions as to the court shall seem just.

(5) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(6) Notwithstanding any agreement entered into under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street and if by reason or in consequence of any such agreement it becomes necessary to alter any such telegraphic line the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration as though the Corporation or the owner of the adjoining land (as the case may be) were "undertakers" within the meaning of the said Act.

(7) In any case where the adjustment of the boundary of any street under the powers of this section would affect any mains pipes or apparatus of the South Staffordshire Waterworks Company and the Town of Dudley Gas Light Company respectively (each of which is in this section separately referred to as "the company") the Corporation shall in addition to the notice required by subsection (2) of this section give notice in writing of their proposals to the company and notwithstanding any agreement entered into under this section the company shall continue to have the same powers and rights in respect of any such mains pipes or

apparatus belonging to or used by them which remain in under or upon the land so conveyed by the Corporation as if the same had continued to be part of the street : A.D. 1928.
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Provided that—

- (a) the Corporation may by such last-mentioned notice require the company to alter and the company when so required shall alter; or
- (b) the company may if they notify the Corporation within the period of one month after the receipt by them of such last-mentioned notice of their intention so to do alter

the position of any such mains pipes or apparatus so that the same shall be situate in the street as altered under the provisions of this section and any expense reasonably incurred by the company in effecting any such alteration as aforesaid shall be repaid to them by the Corporation.

98.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) within the borough are submitted to the Corporation for approval the Corporation may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision so to be made and the terms and conditions upon which such provision is to be made shall failing agreement between the Corporation and the respective persons interested in such estate or lands be determined on the application of the Corporation or any such person by an arbitrator to be appointed by the Minister and the Corporation may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agree-

Adjustment
of bound-
aries of
estates.

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ment be determined by arbitration as aforesaid. Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Corporation.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor. Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Corporation may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Corporation may think reasonable.

No building
allowed
until street
defined.

99.—(1) Where plans and sections of a new street have been deposited with and approved by the Corporation no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line and level of so much of the street as abuts upon or adjoins

the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for such person except with such consent to erect the building or any fence nearer to the centre of the street than such line.

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(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

100.—(1) The Corporation may at any time after prescribing the improvement line of any street in pursuance of the power conferred upon them by section 33 (Power to prescribe improvement line for widening streets) of the Public Health Act 1925 on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such improvement line at the date when the same was so prescribed shall be pulled down set back or altered so that the same shall not project beyond or in front of such improvement line.

Further
powers as to
future line
of street.

(2) The owner may and if so required by the Corporation shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement of the Corporation under this section and carry out such requirement.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Corporation under this section the Corporation shall make compensation to the owner lessee and tenant of any such building or erection and to any or either of them for any loss or damage sustained by such owner lessee or tenant in consequence of such building or erection being pulled down set back or altered as aforesaid.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street and accruing to the property in respect of which such compensation shall be payable

A.D. 1928. shall be fairly estimated and set off against such compensation.

(5) Any person who shall fail to comply with a requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Building
line in
streets.

101.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called “ the building line ”) and the Corporation shall be deemed to have approved any building line unless within six weeks after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof.

(2) The Corporation may also prescribe the building line to be observed in those parts of any street (not being a highway maintainable by them) already formed upon which buildings have not already been erected.

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Corporation or before the expiration of the six weeks aforesaid without their approval nor beyond or in front of the building line approved or prescribed by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(4) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Corporation.

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(5) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of a new street than one-half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the Public Health (Buildings in Streets) Act 1888 the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(7) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

(8) Any person deeming himself aggrieved by any requirement of or by the Corporation under this section may within fourteen days from the date of such requirement appeal to a court of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court shall seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court of summary jurisdiction may direct.

102.—(1) (a) No fence hoarding or other similar structure (in this section referred to as "structure") of a greater height than six feet six inches above the level of the ground at the nearest boundary of the road or street shall be erected or brought forward on any land in any street within the borough—

As to hoard-
ings and
similar
structures.

- (i) beyond any building line prescribed by the Corporation in respect of the land under the provisions of any Act; or
- (ii) if there be no such line beyond any line which is enforceable by the Corporation for buildings

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under subsection (2) of section 100 of the Housing Act 1925; or

- (iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may at their own expense take down or remove any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a movable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

As to erection of

103.—(1) Before any person shall erect on any land within the borough a retaining wall of greater

height than six feet abutting on or adjacent to any street or road he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Corporation.

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—
retaining
walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding twenty shillings.

104.—(1) Every person intending to erect within the borough any stand or structure for affording sitting or standing accommodation for a number of persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Corporation a plan and section thereof and shall comply with such regulations as the Corporation may prescribe for securing the stability of such stand or structure and for securing the safety of persons to be accommodated thereon.

Restriction
on erection
of tempor-
ary stands
&c.

(2) Any person acting in contravention of this section or offending against any such regulation shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) The provisions of this section shall not apply to any person who is a roundabout proprietor travelling showman or stallholder not being a pedlar or hawker.

105.—(1) If the Corporation shall by resolution determine that any banner streamer sign or lettering suspended across any street within the borough for the purposes of advertisement or announcement is a nuisance or objectionable by reason of its size construction or situation or an injury to the amenities of the street across or over which such banner streamer sign or lettering is suspended or hung they may by notice in writing require the owner of or person responsible for the suspension or hanging of such banner streamer sign or lettering to remove the same within such period not being less than seven days as may be specified in the notice.

Banners and
signs over
streets.

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(2) Any person neglecting or refusing to comply with the requirement of any such notice and any person who shall have removed any such banner streamer sign or lettering as is referred to in any such notice (whether the removal be effected before or after the receipt of the notice) and shall after such removal suspend or hang the same or any similar banner streamer sign or lettering without the permission in writing of the Corporation or without complying with any conditions attaching to any such permission shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

(3) For a period of two years from the passing of this Act the foregoing provisions of this section shall not apply to any such banner streamer sign or lettering as is referred to in subsection (1) hereof which was in use on the eighteenth day of November nineteen hundred and twenty-seven.

(4) Any person aggrieved by any requirement of any notice of the Corporation or the withholding of permission by the Corporation or the conditions attached to any such permission under the provisions of this section may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed on every notice of the Corporation under this section.

Fire plugs.

106. Any person who shall cover over or wilfully or negligently obstruct or interfere with the convenient access to any fire alarm fire-plug or hydrant within the borough or who shall remove or efface any plate or mark indicating the position of such alarm plug or hydrant shall be liable to a penalty not exceeding five pounds.

Police telephone call boxes and fire alarms.

107. The Corporation may (a) erect or fix police telephone call boxes in such positions in any street road or public place within the borough as they think fit (b) with the consent of the road authority and with the consent and at the cost of the local authority (which cost the local authority are hereby authorised to incur) erect or fix street fire alarms in such positions as may be agreed

in any street road or public place in the district of any local authority with whom the Corporation have entered into an agreement for the use of their fire brigade. Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869. A.D. 1928.
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108.—(1) The Corporation may cause to be put up or painted on a conspicuous part of any building or place not being a dwelling-house at or near to the corner of any street signs indicating the direction or the distance to towns railway stations public buildings and other places of a public character. Direction signs.

(2) Before putting up or painting a sign on a building or place the Corporation shall give notice thereof to the owner of such building or place and such owner if aggrieved by such notice may appeal to a court of summary jurisdiction within one month after the service of such notice provided he give written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

Notice of the right to appeal shall be endorsed on every notice given by the Corporation under this section.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such sign shall be liable to a penalty not exceeding forty shillings and the Corporation may recover the expenses of replacement and making good from such person.

109.—(1) It shall be lawful for the Corporation at all times of public processions rejoicings or illuminations or on other emergencies to cause barricades to be erected across any of the streets of the borough and to continue the same for such time as may be deemed reasonably necessary and any person who wilfully removes any such barricade or any part thereof shall be liable to a penalty not exceeding forty shillings. As to barriers in streets.

(2) For the purpose of the erection of such barriers the Corporation may construct or place in and under the surface of the streets of the borough such sockets or slots as may in their opinion be necessary or convenient.

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As to pavement lights.

110.—(1) From and after the passing of this Act it shall not be lawful for the owner or occupier of any property to construct in any pavement forming part of any street in the borough any work for the admission of light through such pavement to any room or premises situate under or adjoining the same (in this section referred to as “pavement lights”) without the consent in writing of the Corporation.

(2) In giving their consent to the construction of any pavement lights the Corporation may attach thereto such terms and conditions as they may think fit.

(3) Any agreements entered into by the Corporation with any person prior to the passing of this Act which would have been valid under the provisions of this section if made after the passing thereof are hereby confirmed.

Provisions
as to fore-
courts.

111.—(1) If the Corporation shall by resolution determine that any stall structure or other erection on any forecourt within the borough is by reason of its character injurious to the amenities of the street in which such forecourt is situate they may by notice in writing require the owner of or person responsible for such stall structure or other erection within such period not being less than seven days as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Any person aggrieved by any requirement of any notice of the Corporation under the provisions of this section may appeal to a court of summary jurisdiction within seven days after the service upon him of such notice by the Corporation provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed upon every such notice served by the Corporation.

112. Where in the opinion of the Corporation repairs the cost of which will not exceed five pounds are required in the case of any street not being a highway repairable by the inhabitants at large to obviate or remove danger to any passenger or vehicle in the street the Corporation may execute such repairs as they deem necessary and may themselves pay such cost and the execution of such repairs and the payment of such cost shall not prejudice or affect the operation in regard to such street at any subsequent date of the Private Street Works Act 1892 or of section 19 (As to urgent repairs of private streets) of the Act of 1907.

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As to urgent repairs of private streets.

113.—(1) Where by reason of any improvement made by the Corporation within the borough any land shall become land which adjoins or abuts upon any street the following provisions shall apply:—

Elevation of buildings erected on front lands to require approval.

(i) If the owner lessee or occupier of any such land shall construct—

(a) any door or entrance in an existing building communicating with that street; or

(b) any wall or fence by the side of that street;

he shall construct the door entrance wall or fence in such position and in accordance with such elevations as may be approved by the Corporation;

(ii) If the Corporation within six weeks after any elevations shall have been submitted to them under this section shall have failed to notify their determination in writing to the person submitting the same the Corporation shall be deemed to have approved of the elevations.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) The Corporation shall make compensation to the owner of any land for any loss or damage he may suffer by reason of the setting back or bringing forward of such wall or fence.

114.—(1) Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act

Elevation of new build-

A.D. 1928

ings front-
ing streets.

1875 is hereby extended so as to enable the Corporation to make byelaws providing in such manner as they may think necessary that any person intending to erect a building in any street within the borough shall furnish the Corporation with drawings of the elevations of the building and particulars of the materials to be used in those parts of the building which are comprised in the elevations (which drawings and particulars are in this section included in the expression "elevations").

(2) For the purpose of assisting the Corporation in the exercise of the power of approving or disapproving elevations hereinafter conferred a standing advisory committee of three members (in this section called "the advisory committee") shall be constituted for the borough of whom one member shall be a Fellow of the Royal Institute of British Architects to be nominated by the President of the said institute one member shall be a Fellow of the Surveyors' Institution to be nominated by the President of the said institution and one member shall be a justice of the peace to be nominated by the council:

Provided that a member of the council shall be disqualified from being a member of the advisory committee.

(3) Subject as aforesaid the members of the advisory committee shall be appointed by the council and any vacancy occurring on the advisory committee shall be filled by the council on the nomination of the person or body by whom the member causing the vacancy was nominated. The Corporation may pay the members of the advisory committee such reasonable fees and expenses as the Corporation think fit.

(4) Where the elevations of any building proposed to be erected are required to be submitted to the Corporation by a byelaw made under the said section 157 as extended by this section the Corporation shall within one month after the submission to them of the elevations—

(a) approve the elevations; or

(b) if they shall consider that having regard to the general character of the existing buildings in the street or of the buildings proposed therein to be erected the building to which the elevations relate would seriously disfigure the street whether by reason of the height of the building

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or its design or the materials proposed to be used in its construction refer the question of the approval of the elevations to the advisory committee for their decision thereon and the reference shall be accompanied by a statement of the grounds on which the proposed building is considered to be objectionable.

(5) The Corporation shall forthwith send notice in writing to the person by whom the elevations were deposited of their approval thereof or if the building is considered to be objectionable on any of the grounds mentioned in this section of the reference of the elevations to the advisory committee and the notice shall be accompanied by a statement of the objections to the building.

(6) (a) The person by whom the elevations were deposited shall within fourteen days of his receiving notice of the reference to the advisory committee be entitled to send to the advisory committee a statement of his answers to the objections of the Corporation and if he does so he shall at the same time send a copy thereof to the town clerk.

(b) (i) The advisory committee shall within one month after the receipt of the reference decide whether having regard to the consideration mentioned in subsection (4) (b) of this section they approve or disapprove the elevations and their decision shall be final and conclusive.

(ii) If the elevations are disapproved the decision of the advisory committee shall contain a statement of the grounds on which the proposed building is considered to be objectionable.

(iii) In arriving at their decision the advisory committee may adopt such procedure as they think fit.

(7) The decision of the advisory committee shall be in writing signed by them and a copy of the decision shall as soon as may be after the determination of the reference be sent to the council and to the person by whom the elevations were submitted.

(8) In the event of a division of opinion among the members of the advisory committee upon reference to

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(9) Where the elevations of a building have been disapproved under this section it shall not be lawful to erect the building until the elevations thereof have been approved by the Corporation and any person who acts in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

(10) The costs of any reference to the advisory committee shall be paid as the advisory committee may direct. Where such costs or part thereof are payable by the person submitting the elevations they shall be recoverable by the Corporation summarily as a civil debt and where such costs or part thereof are payable by the Corporation they shall be recoverable by the person submitting the elevations in the like manner.

(11) The provisions of this section shall not apply to a building (not being a dwelling-house) belonging to any person or body of persons authorised by virtue of any Act of Parliament or any Order having the force of an Act of Parliament to manufacture gas or to supply electricity or water or to navigate on or use any river canal dock harbour or basin or to demand any tolls or dues in respect of such river canal dock harbour or basin and used or intended to be used exclusively for such purposes under the provisions of such Act of Parliament or Order.

Prevention
of obstruc-
tive build-
ings.

115.—(1) If the medical officer is of opinion that any building proposed to be erected in the borough would if erected—

- (a) stop ventilation or otherwise make or conduce to make other buildings in its proximity to be in a condition unfit for human habitation or dangerous or injurious to health; or
- (b) prevent proper measures from being carried into effect for remedying any nuisance injurious to health or other evils complained of in respect of such other buildings;

he may make a representation to the Corporation to that effect stating that in his opinion it is inexpedient that the proposed buildings should be erected.

(2) A representation made to the Corporation in pursuance of this section shall be deemed to be a representation made under the provisions of subsection (1) of section 19 (Power to local authority to order obstructive buildings to be pulled down) of the Housing Act 1925 and the provisions of that section with the necessary modifications shall extend and apply accordingly. A.D. 1928.

116.—(1) In case any building within the borough is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised or the top of such last-mentioned building whichever may be the higher. Erection of buildings to greater height than adjoining building.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

117.—(1) Where an unoccupied building within the borough is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Corporation may order the owner at his option either to take down or to repair such building (in this section referred to as a “neglected structure”) or any part thereof or otherwise to put the same or any part thereof into a state of repair and good condition to the satisfaction of the Corporation within a reasonable time to be fixed by the order and may also make an order for the costs incurred up to the time of the hearing. Dilapidated and neglected buildings.

(2) If the order is not obeyed the Corporation may with all convenient speed enter upon the neglected structure and execute the order.

(3) Where the order directs the taking down of a neglected structure or any part thereof the Corporation in executing the order may remove the materials to a

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convenient place and (unless the expenses of the Corporation under this section in relation to such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit.

(4) All expenses incurred by the Corporation under this section in relation to a neglected structure may be deducted by the Corporation out of the proceeds of the sale and the surplus (if any) shall be paid by the Corporation on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Corporation or if the proceeds of the sale are insufficient to defray the said expenses the Corporation may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repair.

As to dangerous
buildings.

118.—(1) In the case of any building within the borough which may appear to the Corporation on the report of any duly qualified officer to be dangerous to the inmates or persons working therein the Corporation may order a complete external and internal inspection and examination of any such building to be made by a competent person and for that purpose such person may on giving not less than twenty-four hours' notice to the occupier of the building and on producing written authority from the town clerk at any hour of the day between nine o'clock in the morning and six o'clock in the afternoon with such other persons as he may deem necessary enter upon such building and examine and inspect the same.

(2) If upon such examination and inspection it shall appear necessary that any works should be executed or alterations made for the purpose of putting such premises into a safe and proper condition for the purposes for which the same are used the Corporation in respect of such building and the works to be carried out therein shall have and may exercise all or any of the powers vested in the Corporation with respect to dangerous structures.

Byelaws as
to alterations
of
buildings.

119. The power given by subsection (4) of section 23 (Extension of 38 & 39 Vict. c. 55 s. 157) of the

Public Health Acts Amendment Act 1890 to make byelaws with respect to the alteration of buildings shall be extended so as to authorise byelaws with respect to the alteration of buildings whether or not erected in accordance with byelaws and with respect to the submission of such plans and sections as can be required in relation to the erection of a new building.

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120. Section 17 (Power to vary position or direction and to fix beginning and end of new streets) of the Act of 1907 shall in its application to the borough be read and have effect as if subsection (2) of the said section were omitted therefrom.

Amendment
and applica-
tion of sec-
tion 17 of
Act of 1907.

121.—(1) Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 in its application to the borough shall be extended so as to empower the Corporation to make byelaws with respect to—

Extension
of sec-
tion 157 of
Public
Health Act
1875.

- (i) the number of dwelling-houses which may be erected in one block or in one continuous row;
- (ii) the provision of an open space for separating blocks or rows of dwelling-houses and the width of such space;
- (iii) the situation construction and height of walls or fences upon or across such open space;
- (iv) the materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings or be newly set or reset in existing buildings and the thickness and construction of walls of all ovens and furnaces wholly or partially built after the passing of this Act;
- (v) the uniting of buildings and the making and stopping up of openings in party walls of buildings and the provision of fire-resisting doors in connection therewith and as to the occupation of buildings when united;
- (vi) the testing of drains of new buildings;
- (vii) the securing that waterclosets shall be so constructed and supplied with water that they can

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be adequately flushed by mechanical means and the provision to be made for securing the protection of the same from frost.

(2) Before any byelaws are made under paragraph (vii) of subsection (1) of this section the Corporation shall furnish a copy thereof to the South Staffordshire Waterworks Company who shall be entitled to object to the confirmation thereof.

Means of
escape from
buildings in
case of fire.

122.—(1) Every building erected within the borough after the passing of this Act exceeding two storeys in height and in which the upper surface of the floor of any upper storey is above twenty feet from the street level and which is used or intended to be used as flats or as a tavern hotel hospital boarding-house common lodging-house or boarding-school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant shall be provided on each of the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in case of fire for the persons dwelling sleeping or employed in each such upper storey or resorting thereto as may be reasonably required by the Corporation under the circumstances of the case and the owner shall not permit such building to be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) If the owner of the building alleges that any occupier should bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to the county court of Worcester holden at Dudley and thereupon the said county court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable in all the circumstances of the case.

(3) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirement of the Corporation under this section.

(4) The means of escape in case of fire provided in connection with any such building as aforesaid shall not

be altered without the consent in writing of the Corporation and shall at all times be maintained and kept by the occupier of the building in good and efficient condition and free from obstruction.

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(5) This section shall not apply to premises to which section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or any enactment amending those sections apply.

(6) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

123.—(1) The provisions of section 36 of the Public Health Acts Amendment Act 1890 shall extend and apply to shops and departmental stores where more than twenty-five persons are employed and to any club registered under the provisions of section 91 (Obligation to register clubs) of the Licensing (Consolidation) Act 1910 in the borough whether existing before or after the passing of this Act. Provided that in the application of the provisions of the said section 36 to any club the said section shall be read and have effect as if the words “ for the use of the public ” were omitted from subsection (1) thereof.

Means of
ingress and
egress from
large shops
and depart-
mental
stores.

(2) Any person aggrieved by a requirement of the Corporation under the said section 36 in its application to shops departmental stores or clubs in pursuance of the powers of this section may within fourteen days after the date on which the Corporation give notice of their requirement to such person appeal to a court of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court may seem fit and may award costs. Provided that such person shall give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk.

(3) Notice of the right to appeal shall be endorsed on every notice of the Corporation under this section.

(4) For the purposes of this section section 7 of the Public Health Acts Amendment Act 1890 shall not apply.

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Food stor-
age accom-
modation.

124.—(1) Every dwelling-house erected within the borough after the passing of this Act shall be provided with sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(2) (a) Every existing dwelling-house and every dwelling-house the erection of which was commenced before the passing of this Act shall where reasonably practicable be provided with sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(b) Any person aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

(d) If the owner of the dwelling-house alleges that any occupier should bear or contribute to the expenses of complying with any requirements of the Corporation under this section he may apply to the county court and thereupon the county court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable under all the circumstances of the case.

Area of
habitable
rooms.

125. Section 23 (Extension of 38 & 39 Vict. c. 55 s. 157) of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words "and floor-area" had been inserted therein after the word "height" in subsection (1) of that section.

126.—(1) The Corporation may prohibit the construction in or in connection with any dwelling-house within the borough of any cellar or room the floor level of which shall be lower than the highest known level of the sub-soil water on under or adjacent to the land on which such dwelling-house shall be erected.

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Cellars not
to be con-
structed
below sub-
soil water
level.

(2) Any person offending against any prohibition of the Corporation under the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

127.—(1) (a) No tent van shed or similar structure used or intended to be used for human habitation shall be placed or kept on any land situate within the borough without the previous approval of the Corporation.

Prohibition
of tents
vans &c.

(b) It shall not be lawful for any person without the previous consent of the Corporation to let or permit to be used any land for occupation by any tent van shed or similar structure used or intended to be used for human habitation unless and until such land is provided with sufficient roads and sewers and furnished with a separate supply of water to the satisfaction of the Corporation.

(2) Any person aggrieved by the withholding by the Corporation of any approval or consent under the provisions of this section may within twenty-one days from the date of the decision of the Corporation appeal to a court of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(3) This section shall not apply to (a) a tent van shed or similar structure which is not used or intended to be used by the occupier as a sole or principal means of habitation for an unbroken period of at least three months or (b) any person dwelling in a tent or van or other similar structure who is a roundabout proprietor travelling showman or stallholder not being a pedlar or hawker.

(4) Any person offending against the provisions of this section shall be liable to a penalty of five pounds and to a daily penalty not exceeding twenty shillings.

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Provisions
as to tents
vans &c.

128. Any tent van shed or similar structure standing upon land abutting upon a street shall for the purpose of the application of section 3 of the Public Health (Buildings in Streets) Act 1888 to the borough be deemed to be a house or building within the meaning of those words where they first occur in the said section.

Further pro-
visions as to
sanitary
conveni-
ences.

129.—(1) The owner of two or more sanitary conveniences within the borough provided for or in connection with two or more separate dwelling-houses and used in common by the occupiers of such dwelling-houses shall so far as reasonably practicable allot such sanitary conveniences to the occupiers of particular dwelling-houses so as to insure that the same are allocated proportionately (as nearly as may be) amongst such dwelling-houses.

(2) The owner of any such sanitary conveniences shall cause to be affixed to the door or walls of each such sanitary convenience a notice identifying the dwelling-house the occupiers of which are entitled to use such sanitary convenience.

(3) Any owner who shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

Closet ac-
commoda-
tion in
houses occu-
pied by
more than
one family.

130.—(1) Section 36 (Power of local authority to enforce provision of privy accommodation for houses) of the Public Health Act 1875 shall with the necessary modifications apply to a part of a house within the borough occupied by a separate family as it applies to the whole of a house.

(2) The provisions of subsections (1) (2) and (3) of section 7 (Execution of works to comply with byelaws) of the Housing Act 1925 shall apply with any necessary modifications as if the same were set out in this section.

Byelaws as
to water-
closets.

131. The Corporation may make byelaws for preventing the improper use of waterclosets within the borough and the blocking of the pipes therefrom.

Combined
drains.

132.—(1) If it appears to the Corporation that two or more houses within the borough may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any

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part of the premises the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owner or owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners subject to a right of appeal under subsection (4) of this section.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not except by agreement with the owners exercise the powers conferred by this section in respect of any house for the drainage of which plans shall have been previously approved by them.

(4) Any person aggrieved by the amount of any costs and expenses proposed to be recovered by the Corporation under this section or the amount to be borne and paid by him may appeal to a court of summary jurisdiction provided that such appeal be made within two months from the date of the service of notice by the Corporation intimating the amount payable or their apportionment thereof. On any such appeal the court may make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

133.—(1) Where two or more houses or premises within the borough are connected with a single private drain which conveys their drainage into a public sewer or into a cesspool or other receptacle for drainage the Corporation shall have all the powers conferred by section 41 (Examination of drains privies &c. on complaint of nuisance) of the Public Health Act 1875 and the Corporation may recover any expenses incurred by them in executing any works under the powers conferred on them by that section from the owners of the houses in

Houses connected with single private drain.

A.D. 1928. — such proportions as shall be settled by the surveyor or (in case of dispute) by arbitration under the Public Health Act 1875 or by a court of summary jurisdiction and such expenses shall be recoverable summarily as a civil debt or the Corporation may declare them to be private improvement expenses and may recover them accordingly.

(2) Section 19 (Extension of 38 & 39 Vict. c. 55 s. 41) of the Public Health Acts Amendment Act 1890 shall cease to be in force within the borough.

(3) For the purposes of this section the expression "drain" includes a drain used for the drainage of more than one building whether owned or occupied by the same person or not.

As to defective drains
&c.

134.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain watercloset or soil pipe within the borough is stopped up or otherwise defective the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Corporation may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier in a summary manner as a civil debt.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Corporation was reasonable and whether the expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

Improper
construction
or repair of
watercloset
or drain.

135.—(1) If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such nuisance or injury or danger to health could not have been avoided by the exercise of reasonable care be liable to a penalty not exceeding twenty pounds.

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(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if the person charged proves to the satisfaction of the court that he has used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

136. If any drain (including any joint or combined drain) shall not be well and sufficiently maintained and kept in good repair to the satisfaction of the Corporation it shall be lawful for the Corporation if in their opinion such drain can be sufficiently repaired at a cost not exceeding twenty pounds to cause the same to be repaired and the expenses of such repairs may be recovered by them from the owner or owners of such drain in such proportions as the surveyor shall determine : As to repair of drains.

Provided that where such expenses do not exceed twenty shillings the Corporation may remit the payment of the same by the owner or owners if the Corporation think fit.

137. If any person cause any drain watercloset earthcloset privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds : Wilful damage to drains water-closets &c.

Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

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Powers on
inspection.

138. In exercising any powers of entry upon and inspection of any building or works in course of construction the surveyor and his assistants shall have from the builder of or contractor for such building or works free of expense all reasonable use and assistance of ladders scaffolding and plant in and about such building or works Any person who shall refuse such use and assistance as aforesaid or shall obstruct the surveyor or his assistants in the use of such ladders scaffolding and plant as aforesaid shall be guilty of an offence and shall be liable on summary conviction to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Sanitary
conveni-
ences for
workmen
engaged on
buildings.

139.—(1) The contractor or builder engaged in or upon the erection of a new building or the construction or reconstruction of any works shall where practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such erection construction or reconstruction such water or other closets and urinals in or in connection with such building or works as may be sufficient for the accommodation of the workmen employed.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

As to powers
of requiring
sanitary
conveni-
ences for
manufac-
tories &c.

140. The Corporation may exercise the powers of an urban authority under section 22 of the Public Health Acts Amendment Act 1890 (which relates to the provision of sanitary conveniences in workshops and manufactories) on the report of the medical officer or the sanitary inspector as well as on the report of the surveyor.

For further
protection
of Town of
Dudley Gas
Light Com-
pany.

141. The provisions of the sections of this Act of which the marginal notes are "Elevation of new buildings fronting streets" and "Erection of buildings to greater height than adjoining building" shall not extend or apply to any building (not being a dwelling-house) constructed by or belonging to the Town of Dudley Gas Light Company in the exercise of their powers under any Act of Parliament or Special Order so long as such building is used by the company primarily for the purposes of their undertaking.

142. Nothing in this Part of this Act except the sections whereof the marginal notes are—

- “ As to hoardings and similar structures ”;
- “ Banners and signs over streets ”;
- “ Direction signs ”;
- “ Restriction on erection of temporary stands &c.”;
- “ Dilapidated and neglected buildings ”;
- “ Means of escape from buildings in case of fire ”;
- “ Prohibition of tents vans &c.”;
- “ Provisions as to tents vans &c.”;
- “ Powers on inspection ”;

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—
Exemption
for railway
companies.

shall extend or apply to any building (not being a dwelling-house) railway canal or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway or canal company in the exercise of their statutory powers or to any land held or acquired or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway canal work or land is used or held by such company primarily for railway or canal purposes.

PART VI.

INFECTIOUS DISEASE AND SANITARY MATTERS.

143. For the purposes of the sections of this Act of which the marginal notes are “ Parents to notify infectious disease ” “ Power to close Sunday schools and exclude children from entertainments ” and “ Restriction on attendance of children at Sunday schools and places of assembly when infectious disease prevails ” respectively the expression “ infectious disease ” includes measles German measles whooping cough chicken pox scabies ringworm and influenza in addition to the diseases referred to in the section of this Act of which the marginal note is “ Interpretation of terms.”

Definition
for purposes
of this Part
of Act.

144.—(1) Any person being a parent or having the care or charge of a child attending at a school in the borough who is aware of or has reason to suspect the occurrence of any infectious disease in any person residing with such parent or other person and who fails forthwith to notify such occurrence to the head teacher

Parents to
notify
infectious
disease.

A.D. 1928. — principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings.

In any proceeding under this subsection a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

(2) For the purpose of this section the expression "school" shall include a Sunday school.

Power to close Sunday schools and exclude children from entertainments.

145.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease require the closing of any Sunday school or any department thereof within the borough or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

Restriction on attendance of children at Sunday schools and places of assembly when infectious disease prevails.

146.—(1) No person of or exceeding the age of sixteen years who has the custody charge or care of a child who is or has been attending any school or any part thereof within the borough which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school or place of public entertainment or assembly in the borough without having procured from the medical officer or school medical officer a certificate

(which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

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(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

147.—(1) The occupier of any building in the borough which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information to be furnished in case of infectious disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) For the purposes of this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889 and the expression "infectious disease" shall include pulmonary tuberculosis in addition to the diseases referred to in the section of this Act of which the marginal note is "Interpretation of terms."

148. If a person who is suffering from an infectious disease or who is living in a house in which there is a case of infectious disease knowingly engages in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household in such a manner as to be likely to spread the infectious disease he shall be liable to a penalty not exceeding forty shillings.

Prohibition on infected person carrying on business.

149. If any person shall at the request of the Corporation acting on the advice of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

Power to compensate persons for ceasing employment to prevent spread of disease.

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Names of
laundrymen
to be fur-
nished.

150.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for washing or mangling from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

(2) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

For regu-
lating
manufac-
ture and
sale of ice-
cream &c.

151.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who within the borough omits on the outbreak of any infectious disease amongst the persons employed in his business or residing in any premises which are used by him for the manufacture of ice-cream or other similar commodity to give notice thereof to the medical officer shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any persons so employed or resident suffering from any infectious disease the medical officer or the sanitary inspector or any other officer who is duly authorised by the Corporation in that behalf may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in any of the premises and the Corporation shall compensate the owner of the ice-cream or similar commodity or materials so destroyed. Provided that no compensation shall be payable in respect of any ice-cream or similar commodity or materials for the manufacture of the same manufactured or brought upon the said premises after such seizure and while any such person is suffering from infectious disease.

(3) Every vendor of or dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand or from a pail container or similar receptacle used without a cart barrow or other vehicle or stand shall have his name and address legibly

painted or inscribed on such cart barrow vehicle or stand pail container or receptacle and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

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(4) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of inspection of the materials or commodities or articles of food in the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity and of any cart barrow or other vehicle or stand pail container or receptacle in from or on which the same are offered for sale as an officer of the Corporation would have under section 72 (Precautions against contamination of food intended for sale) of the Public Health Act 1925 in the cases therein mentioned and any person refusing inspection of the materials or commodities or articles of food in any such premises or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding five pounds.

152.—(1) (a) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any tent van shed or similar structure used for human habitation) within the borough would tend to prevent or check tuberculosis the town clerk shall give notice in writing to the owner or occupier of such building that the same or any part thereof will be cleansed and disinfected by and at the cost of the Corporation unless the owner or occupier of such building informs the Corporation within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within a time to be fixed in the notice.

Disinfection
in case of
tubercu-
losis.

(b) If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Corporation as aforesaid or if having so informed the Corporation as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Corporation under

A.D. 1928. the superintendence of the medical officer. Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer.

(c) For the purpose of carrying into effect the provisions of this subsection the Corporation may by any officer who shall be authorised in that behalf in writing under the hand of the medical officer and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon.

(d) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Corporation for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable to a penalty not exceeding five pounds.

(b) Such articles books things bedding and clothing shall be disinfected by the Corporation and returned to the owner free of charge.

(3) If any person sustains any damage by reason of the negligent exercise by the Corporation of any of the powers of subsections (1) and (2) of this section in relation to any matter as to which he is not himself in default compensation shall be made to such person by the Corporation and the amount of compensation shall be recoverable in and in the case of dispute may be settled by a court of summary jurisdiction.

Regulation
dustbins.

153.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-

house warehouse or shop within the borough to provide portable covered galvanised iron dustbins in lieu of ash-pits or ashtubs or other receptacles for refuse and such dustbins shall be of such size and construction as may be approved by the Corporation.

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(2) Every owner or occupier having provided any receptacle pursuant to this section shall maintain the same in good order and condition.

(3) Provided that the foregoing provisions of this section shall not apply to any covered ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

(4) From and after the passing of this Act it shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

(5) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under subsection (1) of this section or who fails to comply with his obligation under subsection (2) of this section as the case may be shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (4) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

(6) Nothing in this section shall apply to any warehouse belonging to a railway company from which the Corporation do not remove the refuse.

154.—(1) If the owner of any dwelling-house or premises occupied therewith within the borough represents to the Corporation that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Corporation duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if the Corporation or a committee of the council are satisfied of the truth of the representation of such owner the occupier

As to filthy premises.

A.D. 1928. — shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be enforced in the manner provided by section 34 (Summary order to do act other than a payment of money) of the Summary Jurisdiction Act 1879.

(2) Any expenses incurred by the Corporation under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

Houses
without
water sup-
ply.

155.—(1) The owner of any dwelling-house or tenement in the borough which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house or tenement shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the means of affording such a supply of water are not available and cannot be made available at a reasonable cost:

Provided that the owner of any dwelling-house erected before the passing of this Act shall not be liable to the penalties provided by this section unless the Corporation shall have given to such owner one month's notice in writing requiring him to provide such dwelling-house with a proper and sufficient water supply within such dwelling-house.

(2) Section 62 (Local authority may require houses to be supplied with water in certain cases) of the Public Health Act 1875 shall be read and have effect as if the words " or the medical officer of health " were inserted therein after the words " the surveyor."

Byelaws as
to refuse.

156. The power of the Corporation to make bye-laws under section 26 of the Public Health Acts Amendment Act 1890 shall extend to refuse which is not faecal or offensive or noxious matter or liquid.

Byelaws as
to stables.

157. The Corporation may make byelaws for securing the proper ventilation and lighting of and for the prevention of insanitary conditions (a) in or about or arising out of any existing stable (whether the same is used as such at the passing of this Act or not) within the

borough or (b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act within the borough.

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158.—(1) Where the veterinary surgeon of the Corporation has certified that any infectious or parasitic disease has appeared in any stable cowshed or other place within the borough where animals are kept and the medical officer has thereupon certified that such stable cowshed or place cannot be efficiently disinfected a court of summary jurisdiction on complaint by the Corporation may make an order requiring the owner to demolish such stable cowshed or place or such part or parts thereof as they may think fit and to destroy the materials thereof in such manner as the order may prescribe.

As to infected stables or other places.

(2) If the order is not obeyed within the time thereby prescribed the Corporation at any time after the expiration of such time may themselves execute the order and all expenses incurred by them under this section may be recovered by them from the owner but without prejudice to his right to recover the same from any lessee or other person occupying the stable cowshed or place.

159.—(1) (a) The Corporation may by written notice to the owner and occupier of any registered slaughter-house within the borough which from its situation or construction is in the opinion of the Corporation injurious or dangerous to the public health require that the premises shall cease to be used as a slaughter-house on and after such date (not being less than six months from the service of such notice) as may be specified in the notice and no person shall after such date slaughter in the way of trade any cattle horse sheep or pig on the said premises.

Power to close slaughter-houses if injurious to public health.

(b) Provided that not less than three months before making any such requirement in the case of any slaughter-house which from its construction is in their opinion injurious or dangerous to the public health the Corporation shall give notice in writing to the owner or occupier thereof specifying the respects in which such slaughter-house is in their opinion so injurious or dangerous and also specifying their requirements with

A.D. 1928. — regard thereto and if within the said period of three months the owner or occupier of such slaughter-house shall have removed the grounds of objection thereto no such written notice as is first above mentioned shall be given to them by the Corporation.

(c) Provided also that any such owner or occupier may within one month after receiving any such notice in writing from the Corporation object thereto on the ground that the requirements contained therein are unreasonable and unnecessary in the interests of public health and any such objection shall failing agreement between the Corporation and the owner or occupier making the same be determined on appeal to the Minister by the Minister and unless and until the Minister shall have determined that the said requirements are reasonable and necessary no such written notice as is first above mentioned shall be given to the owner or occupier of the slaughter-house in question.

(2) The Corporation shall make compensation to the owner and occupier of any registered slaughter-house who shall be injuriously affected by any requirement of the Corporation under subsection (1) of this section such compensation in case of difference to be settled in manner provided by the Public Health Act 1875. Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in pursuance of this section.

(3) If any person acts in contravention of the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding five pounds.

Provision of
public
slaughter-
houses and
prohibition
of private
slaughter-
houses
hereafter.

160.—(1) At any time after the passing of this Act the Corporation may—

- (a) acquire by agreement any premises within the borough used for the purpose of slaughtering cattle (hereinafter referred to as a "slaughter-house") and the interest or interests of any owner lessee or occupier of such premises;
- (b) agree with the owner lessee and occupier of any slaughter-house for the abolition of slaughtering therein on such terms and conditions as may be arranged between the parties.

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(2) At any time after the expiration of three years from the passing of this Act and after the Corporation have provided an adequate slaughter-house in a convenient position (to the satisfaction of the Minister) and after the expiration of six months from the date of publication by the Corporation in a local newspaper circulating in the borough of notice to that effect no person shall slaughter in the way of trade any cattle within the borough except in a slaughter-house provided by the Corporation but this restriction shall not apply to the slaughtering on premises by the owner lessee or occupier thereof of any cattle belonging to him and not slaughtered for the purpose of trade or by a farmer on premises occupied by him for agricultural purposes only and if any person acts in contravention of this section he shall be liable for each offence to a penalty not exceeding five pounds.

(3) The Corporation shall pay or tender compensation to the owner and occupier of any slaughter-house registered prior to the passing of the Public Health Act 1875 and of any slaughter-house the licence in respect of which is not required to be renewed periodically or is not revocable by the Corporation and (in either case) closed under the provisions of this section and the amount of such compensation shall in case of difference be settled as cases of disputed compensation are settled under the Lands Clauses Acts and the provisions of those Acts shall apply accordingly Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in respect of the closing of such slaughter-house.

(4) The fees and charges to be demanded and received by the Corporation in respect of the use of any slaughter-house provided by them or of any convenience connected therewith shall be regulated by byelaws to be approved by the Minister and the Corporation may make byelaws accordingly Provided that the Corporation shall have power to charge for any slaughter-house let at a weekly monthly or other rent such sum as may be agreed upon by the Corporation and the renters.

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(5) Nothing in this section shall interfere with the operation or effect of the Diseases of Animals Acts 1894 to 1927 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

Discontinu-
ance of
offensive
trade.

161.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Act of 1907 and by section 44 of the Public Health Act 1925 and in the opinion of the Corporation it is inexpedient in the interests of public health or having regard to any change since the date of the establishment of such offensive trade in the character of the neighbourhood in which such premises are situate that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Corporation under the hand of the town clerk to cease to use such premises for the carrying on of such offensive trade :

Provided that the formation or expression by the Corporation of an opinion under this subsection shall be deemed to be a determination of the Corporation within the meaning of the section of this Act of which the marginal note is " As to appeals " and that the provisions of the said section of this Act shall accordingly apply with respect to such opinion as well as to any requirement by the Corporation under this subsection.

(2) Any person who fails or neglects to comply with any requirement of the Corporation under the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person compensation for any loss sustained by him in consequence of the action of the Corporation. Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Corporation shall have been given for a period only unless the Corporation shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Corporation with reference to offensive trades.

A.D. 1928.
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162. It shall be lawful for a court of summary jurisdiction upon complaint by the Corporation upon a report by the medical officer or sanitary inspector that any smoke gas or vapour from any chimney of a wash-house or outbuilding forming part of or in proximity to a dwelling-house is a nuisance to any of the inhabitants of the borough to make an order requiring the owner of such chimney to cause the same to be raised or a funnel or pipe to be placed thereon for conveying away such smoke gas or vapour or such other means to be adopted as may seem fitting to such court and as shall not exceed an expenditure of twenty pounds for preventing or mitigating such nuisance within such time as shall be specified in such order and any such owner as aforesaid who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to
order altera-
tion of
chimneys.

163. Section 72 (Precautions against contamination of food intended for sale) of the Public Health Act 1925 (except paragraphs (d) and (e) of subsection (2) of that section) shall apply so far as applicable to a yard in which food is prepared for sale or in which any food other than food contained in receptacles so closed as to exclude all risk of contamination is sold or is stored or kept with a view to future sale and to which yard the Factory and Workshop Act 1901 as amended by any subsequent enactment or any regulation made under the Public Health (Regulations as to Food) Act 1907 does not apply.

Extension of
powers of
section 72 of
Public
Health Act
1925.

164.—(1) The Corporation may make byelaws for promoting and securing sanitary and cleanly conditions in the transport of any article intended to be sold for food.

Byelaws as
to transport
of food.

(2) At least one month before applying to the Minister for confirmation of any byelaws made under this section applicable to the transport by a railway company of any article intended for food the Corporation shall give notice to the company of the Corporation's intention

A.D. 1928. — to make such application and such notice shall be accompanied by a copy of the proposed byelaws and the company shall be entitled to make representations to the Minister with regard thereto.

Registration of premises used for preparation of potted and preserved foods.

165.—(1) Any premises within the borough used or proposed to be used for the preparation or manufacture of potted pressed pickled or preserved meat fish or other food intended for the purposes of sale shall be registered by the owner or occupier thereof with the Corporation from time to time and no premises shall be used for the purposes aforesaid unless the same are registered as aforesaid.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Provided that the provisions of this section shall have no application to any premises occupied as a factory or workshop of which notice is required by subsection (1) of section 127 (Notice of occupation of factory or workshop) of the Factory and Workshop Act 1901 to be given or shall in any way affect the operation of that Act.

As to inspection of premises used for storage of food.

166.—(1) On any inspection of any room carried out by the medical officer sanitary inspector or any other officer of the Corporation under the provisions of subsection (5) of section 72 of the Public Health Act 1925 such officer shall have power to take samples of any such materials commodities or articles of food found therein making reasonable payment therefor and if he intends to submit any sample to analysis he shall forthwith notify to the occupier of such room or his agent his intention to have the same analysed by the public analyst and shall divide the sample into three parts to be then and there separated and each part to be marked and sealed or fastened up in such manner as its nature will permit and shall if required to do so deliver one of the parts to such occupier or agent. The officer shall afterwards retain one of the said parts for future comparison and submit the third part if he deems it right to have the sample analysed to the public analyst.

(2) The expression “ public analyst ” in this section means the analyst appointed by the Corporation for the

purposes of the Sale of Food and Drugs Acts 1875 to A.D. 1928.
1907.

167.—(1) Every medical practitioner attending on a person who is or is suspected to be suffering from food poisoning shall forthwith on becoming aware that such person is or is suspected to be so suffering send to the medical officer a notification of the case stating the name of such person and the place at which such person is.

Medical practitioners to notify cases of food poisoning.

(2) The Corporation shall pay to every medical practitioner for each notification duly sent by him in accordance with this section a fee of two shillings and sixpence if the case occurs in his private practice and of one shilling if the case occurs in his practice of medical officer of any public body or institution.

(3) Every person required by this section to give notice who fails to give the same in accordance with this section shall be liable to a penalty not exceeding forty shillings.

168. Sections 116 to 118 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 shall extend to authorise the medical officer or sanitary inspector to inspect examine and search any cart or other vehicle or any basket sack bag or parcel whether open or closed in which he has reason to suspect that there is any animal or any of the articles referred to in the said sections intended for sale or in the course of delivery after sale for food and the provisions of such sections shall apply accordingly Provided that nothing in this section shall authorise the inspection examination or search of any cart or other vehicle belonging to a railway company and used by them for the purposes of their traffic or any basket sack bag or parcel in the possession of such company as carriers thereof.

Further powers in relation to unsound food.

169. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within the borough or to bring into the borough any carcase or part of a carcase so blown or inflated and any person so blowing or inflating any carcase or any part of a carcase or bringing into the

Prohibition of blowing or inflating carcasses.

A.D. 1928. — borough or exposing or depositing for sale a carcase or any part thereof so blown or inflated shall be liable to a penalty not exceeding five pounds.

Penalty on
original
vendor of
unsound
food.

170.—(1) Where it is shown that any animal or article liable to be seized under section 116 (Power of medical officer of health to inspect meat &c.) of the Public Health Act 1875 (as extended by section 28 (Extension of 38 & 39 Vict. c. 55 ss. 116-119) of the Public Health Acts Amendment Act 1890) and found in the possession of any person was sold to him by another person for food (the proof that the same was not sold for food resting with the party charged) and when so sold was in such a condition as to be liable to be so seized and to be condemned under section 117 (Power of justice to order destruction of unsound meat &c.) of the Public Health Act 1875 the person who so sold the same shall be punishable as mentioned in the last-mentioned section unless he proves that at the time he sold the animal or article he did not know and had no reason to believe that it was in such condition.

(2) Where any animal or article of food has been condemned by a justice under section 117 of the Public Health Act 1875 as extended by section 28 of the Public Health Acts Amendment Act 1890 the person to whom the same belongs or did belong at the time of deposit of such animal or article for the purpose of sale or of preparation for sale as well as the persons in those sections mentioned shall also be punishable as mentioned in section 117 of the Public Health Act 1875 unless he proves that at the time of such deposit he did not know and had no reason to believe that the said animal or article was in such a condition as to be liable to be so condemned.

(3) Before any animal or article liable to be condemned under section 117 of the Public Health Act 1875 as extended by section 28 of the Public Health Acts Amendment Act 1890 and this section is dealt with by a justice the medical officer or the sanitary inspector shall inform the person in whose custody or possession the same was at the time when it was inspected by the medical officer or sanitary inspector of the intention of the medical officer or sanitary inspector to have the same dealt with by a justice and any person who may be liable

in respect of such animal or article to a prosecution under the aforesaid provisions shall be entitled to attend the proceedings before the justice and to be heard with his witnesses upon the application for the condemnation of any such animal or article. A.D. 1928.
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171. Public notice of the effect of the foregoing provisions of this Part of this Act shall be given as soon as is reasonably practicable after the passing of this Act by advertisement in two newspapers published or circulating in the borough. Notice to be given of this Part of Act.

PART VII.

POLICE AND HACKNEY CARRIAGES.

172.—(1) The Corporation may from time to time make regulations prescribing within the central area referred to in subsection (9) of this section— Regulations for controlling traffic.

(a) the streets which are not to be used for traffic by vehicles of any specified class or classes either generally or during specified times;

(b) the streets along which vehicular traffic shall pass in one direction only and the direction in which such traffic shall pass;

(c) the places at which by reason of danger to the public or congestion of traffic omnibuses shall not stop to take up or set down passengers:

Provided that no regulation made under paragraphs (a) or (b) of this subsection shall apply to any vehicle ordinarily engaged in the delivery or collection of goods at or from any premises within the central area whilst so engaged or any tramcar or light railway car.

(2) Before any regulations made under this section shall come into force the Corporation shall submit the same to the Minister of Transport for his approval and shall give notice of the subject-matters of the regulations by advertisement in a local newspaper circulating in the borough and in the London Gazette and in such other manner (if any) as the said Minister may direct. The said notice shall name a place where copies of the regulations can be obtained free of charge and shall state a date (not being less than twenty-one days from the date of the notice) by which and the manner in which

A.D. 1928. — any person aggrieved by the regulations may make representations thereon to the said Minister and that any such person shall at the same time send a copy of his representations to the town clerk.

(3) The said Minister shall consider any regulations submitted to him by the Corporation and any representations thereon which may be duly made and may approve the regulations with or without modifications or may disapprove the same.

(4) Before approving any regulations the said Minister may and if any representation is duly made and is not withdrawn shall (unless the representation appears to him to be frivolous) direct a local inquiry to be held in accordance with the provisions of section 20 of the Ministry of Transport Act 1919 and the Corporation shall pay to the said Minister any expenses incurred by him in relation to any such inquiry including the expenses of any witnesses summoned by the person holding the inquiry and a sum to be fixed by the said Minister for the services of such person.

(5) The Corporation shall give at least fourteen days' notice of the intention to hold such local inquiry with particulars of any proposed regulations by advertisement in a local newspaper circulating in the borough and shall also give similar notice in writing to each person who has duly made any representation and has not withdrawn the same.

(6) The regulations shall take effect as approved by the said Minister and shall come into force on a date to be fixed by him.

(7) The Corporation shall cause notice to be given of all regulations approved under this section by advertisement in a newspaper circulating in the borough and otherwise in such manner as may be prescribed by the said Minister and shall also during the continuance of any regulation approved under paragraph (b) of subsection (1) of this section cause to be erected and maintained in suitable positions a warning notice in a form approved by the said Minister indicating the effect of the regulation and the street to which it relates.

(8) As respects any regulation made and approved under this section (subject to any modification made by

the said Minister as hereinafter provided) any person who— A.D. 1928.

- (a) shall contravene any regulation under paragraph (a) of subsection (1) of this section after warning given by word or signal by a police constable in uniform; or
- (b) shall drive or cause to be driven any vehicle in any street in relation to which a regulation shall be in force under paragraph (b) of the said subsection and a warning notice shall have been erected pursuant to subsection (7) of this section in contravention of such regulation; or
- (c) shall contravene any regulation under paragraph (c) of subsection (1) of this section;

shall be liable to a penalty not exceeding forty shillings.

(9) In this section—

- (a) “ the central area ” means any part of the borough which is within a radius of half a mile from the town hall; and
- (b) “ specified ” means specified in any regulations made or approved under this section.

(10) Any company body or person running omnibuses in the borough may at any time apply to the said Minister to modify any regulation made under this section on the ground that such regulation as in force for the time being has been found to be or has become unsuitable for the traffic requirements of the borough or has been unfairly enforced and upon any such application the said Minister after considering any representations made to him by the Corporation may modify the regulation to which the application relates.

173.—(1) The Corporation may make regulations prescribing within the borough—

- (a) as respects omnibuses in general or omnibuses of any particular class or used on any particular route or running according to a published timetable the stands which may be occupied exclusively by them and the places where they may stop for longer than is necessary for the purpose of picking up and setting down passengers; and

Regulations
as to stands
or stopping
places of
omnibuses.

A.D. 1928.
—

(b) the time during which any omnibus shall be allowed to remain at a prescribed stand or stopping place;

and any omnibus standing upon any such stand or stopping place in accordance with regulations made under this section shall be deemed to be within the exception in the ninth paragraph of section 28 of the Town Police Clauses Act 1847.

(2) Upon the coming into force of the regulations first made under this section the sixth paragraph of section 6 of the Town Police Clauses Act 1889 shall cease to extend to the borough and any byelaws made by the Corporation under that paragraph shall be repealed.

(3) Where the Corporation propose to make regulations under this section they shall cause notice of their proposal and a statement of the effect of the proposed regulations to be published in at least one local newspaper circulating within the borough and shall serve a copy of the notice upon the proprietor of every omnibus licensed to ply for hire within the borough.

(4) Every such notice shall indicate the date (which shall not be less than twenty-eight days) within which any objection to the regulations shall be sent in writing to the Corporation and shall contain a notification of the place at which copies of the proposed regulations may be obtained free of charge.

(5) The Corporation shall consider and determine any objection to the proposed regulations which is sent to them in writing within the time fixed in that behalf and shall send notice of their decision to the objector who if he is dissatisfied with their decision may within fourteen days after the receipt of the notice appeal to the Minister of Transport.

(6) A notification of the right of appeal under this section shall be included in any notice sent by the Corporation of their decision on an objection to the regulations and upon any appeal being made to the said Minister notice in writing of the appeal and of the grounds thereof shall be given by the appellant to the Corporation.

(7) The said Minister shall consider any appeal duly made to him and may make such order in the matter as he thinks fit and his decision shall be final.

(8) Before making any order under this section the said Minister may and if an appeal duly made is not withdrawn shall (unless the appeal appears to him to be frivolous) direct a local inquiry to be held in accordance with the provisions of section 20 of the Ministry of Transport Act 1919 and the provisions in subsections (4) and (5) of the section of this Act the marginal note whereof is " Regulations for controlling traffic " as to expenses and notices of local inquiries shall extend to any local inquiry so directed by the said Minister.

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(9) Where an objection has been made to regulations proposed by the Corporation under this section the regulations shall not be sealed by the Corporation until after the expiration of the time within which an appeal may be made by the objector to the said Minister or if an appeal to the said Minister has been made by the objector until after the determination or withdrawal of the appeal.

(10) Any company body or person running omnibuses in the borough may at any time apply to the said Minister to modify any regulation made under this section on the ground that such regulation as in force for the time being has been found to be or has become unsuitable for the traffic requirements of the borough or has been unfairly enforced and upon any such application the said Minister after considering any representations made to him by the Corporation may modify the regulation to which the application relates.

174. Section 24 of the Municipal Corporations Act 1882 which relates to the proof of byelaws shall extend to regulations made by the Corporation as that section extends to byelaws so made.

Evidence of regulations made by Corporation.

175. The powers conferred by section 21 of the Town Police Clauses Act 1847 shall extend to enable the Corporation within the borough on days appointed for carnivals or similar occasions to direct the passage and stoppage of vehicles along or in particular streets to direct particular routes to be taken for particular descriptions of traffic and to prohibit the passage or stoppage of particular vehicles through or in certain streets at certain hours.

Power to make regulations as to traffic on carnival &c. days.

176. The Corporation may delegate their powers under section 21 (Power to make orders for preventing

As to street traffic.

A.D. 1928,

obstructions in the streets during public processions &c.) of the Town Police Clauses Act 1847 and under the last preceding section of this Act to a committee consisting of not less than five members of the council and any orders made or directions given by such committee under the said section shall have the same force and effect as if made or given by the council.

Unauthorised riding upon vehicles.

177. Every person who shall ride upon or cause himself to be carried or drawn by any vehicle without the consent of the owner or driver thereof shall be liable to a penalty not exceeding ten shillings.

Provisions as to motor and other vehicles let for hire.

178. The provisions of the Town Police Clauses Act 1847 shall extend to empower the Corporation to make byelaws for declaring that to the extent determined by such byelaws those provisions and the byelaws of the Corporation in force with respect to hackney carriages except so much of such byelaws as relates to the fixing of fares shall apply to every horse-drawn or motor vehicle standing or plying for hire notwithstanding that such vehicle stands or plies for hire on private premises only. Provided that this section shall not apply to any such vehicle which is kept and used ordinarily for the purpose of being let on hire by the day or for longer periods of hire or for journeys under special contract or to an omnibus as defined in the Town Police Clauses Act 1889.

Occasional licences for hackney carriages &c.

179. An occasional licence for a hackney carriage omnibus or other public vehicle to ply for hire may be granted by the Corporation to be in force for such day or days or other periods less than one year as may be specified in the licence.

PART VIII.

SALE OF COKE.

Weight ticket or note on delivery of coke over two hundred weights.

180.—(1) Where any coke sold or represented to be sold as a load by weight and exceeding two hundred weights in quantity is delivered by means of any vehicle to a purchaser within the borough the seller of such coke shall deliver or cause to be delivered or to be sent by post or otherwise to the purchaser or to his servant before such load is discharged a ticket or note as nearly as may be according to the form in the Third Schedule to the

Weights and Measures Act 1889 or according to a form A.D. 1928.
to the like effect.

(2) If default is made in complying with the requirements of this section with respect to the delivery or sending of a ticket or note or if the quantity of the coke delivered or in course of delivery is less than the quantity expressed in the ticket or note the seller thereof shall be liable to a penalty not exceeding five pounds.

(3) If any person attending on any such vehicle having received any such ticket or note for delivery to the purchaser refuses or neglects to deliver it as required by this section or on being requested so to do to exhibit it to any inspector of weights and measures or other officer appointed for the purpose by the Corporation he shall be liable to a penalty not exceeding five pounds.

181.—(1) The seller or person in charge of any vehicle from which coke is sold by weight in quantities exceeding fourteen pounds within the borough shall carry on such vehicle a weighing instrument or suitable measure of a type approved by the Corporation stamped by an inspector of weights and measures.

Weighing
instrument
or measure
to be carried
on vehicle.

(2) Any person who shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding five pounds.

182.—(1) Every person who shall sell offer or expose for sale or cause to be sold offered or exposed for sale within the borough coke in a quantity exceeding fourteen pounds but not exceeding two hundredweights shall sell the same or offer or expose the same for sale in sacks with a metal label affixed to the top of every such sack indicating the correct legal weight or measure of coke therein.

Regulating
sale of coke
under two
hundred-
weights.

(2) Every person who shall sell offer or expose for sale or cause to be sold offered or exposed for sale within the borough from any vehicle coke in quantities not exceeding two hundredweights shall have the name and address of the seller of such coke conspicuously painted upon such vehicle.

(3) Any person who shall fail to comply with the provisions of either of the two preceding subsections of this section shall be liable on the first occasion to a penalty not exceeding forty shillings and on the second

A.D. 1928. — or any subsequent occasion to a penalty not exceeding five pounds.

(4) If the seller or any person in charge of any vehicle from which coke is being sold or offered or exposed for sale in quantities not exceeding two hundredweights wilfully makes any false statement as to the weight of the coke in any sack or wilfully increases such weight by damping such coke or wilfully does any other act by which the purchaser of the coke shall be defrauded he shall be liable on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

(5) Public notice of the provisions of this section shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice fixed outside the town hall. The production of copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this subsection have been complied with.

Power to
require
weighing or
re-weighing
of coke and
vehicles.

183.—(1) Any purchaser of coke in a quantity exceeding two hundredweights and any inspector of weights and measures or other officer appointed for the purpose by the Corporation may subject as hereinafter provided require that any coke sold as mentioned in the section of this Act of which the marginal note is “ Weight ticket or note on delivery of coke over two hundredweights ” or any vehicle used for the carriage of such coke be weighed or re-weighed by an instrument stamped by an inspector of weights and measures.

(2) Any purchaser of coke in a quantity exceeding fourteen pounds but not exceeding two hundredweights and any inspector of weights and measures or other officer appointed for the purpose by the Corporation may subject as hereinafter provided require that any coke sold offered or exposed for sale as mentioned in the section of this Act of which the marginal note is “ Regulating sale of coke under two hundredweights ” be weighed or re-weighed or measured or re-measured by an instrument or measure stamped by an inspector of weights and measures.

(3) Provided that—

A.D. 1928.

(a) no seller of coke or person in charge of a vehicle in which coke is carried shall be required under this section to carry coke beyond such distance not exceeding half a mile as may be prescribed in that behalf by the Corporation;

(b) where any such coke or vehicle has at the instance of the purchaser been weighed or re-weighed or measured or re-measured in pursuance of this section and found to be of not less than the weight or measure stated in that behalf by the seller of the coke or the person in charge of the vehicle the purchaser shall be liable to the payment of all reasonable costs actually incurred of and incidental to the weighing or re-weighing or measuring or re-measuring.

(4) If any person obstructs any weighing or re-weighing or measuring or re-measuring authorised by this section he shall be liable for every such offence to a penalty not exceeding five pounds.

(5) Any inspector of weights and measures may with the consent of the Corporation prosecute before a court of summary jurisdiction or justices any proceedings under this section or under any of the preceding sections of this Part of this Act.

PART IX.

FINANCIAL.

184.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods (each of which is in certain of the provisions incorporated in this Act referred to as “the prescribed

Power to
borrow.

A.D. 1928. — period") mentioned in the third column of the said table (namely) :—

1	2	3
Purpose.	Amount.	Period of Repayment.
(a) The purpose of making any payment to any authority under Part II of this Act or under any enactment the provisions of which are applied thereby (including the payment or purchase in the name of the Corporation of any annuity payable by them under any provision contained in or applicable to the provisions of the said Part which annuity the Corporation are hereby empowered to purchase).	The sum requisite.	Forty-five years from the date or dates of borrowing.
(b) The purpose of making any payment under the provisions of the section of this Act of which the marginal note is "Compensation to existing officers."	The sum requisite.	Twenty years from the date or dates of borrowing.
(c) The purchase of lands - - -	£ 92,376	Sixty years from the date or dates of borrowing.
(d) The construction of the street works authorised by this Act.	29,105	Thirty years from the date or dates of borrowing.
(e) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister borrow such further money as may be necessary for any of the other purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister.

185. In calculating the amount which the Corporation may borrow under the provisions of the Public Health Acts any sums which the Corporation may borrow under or for the purposes of this Act shall not be reckoned and the power of the Corporation of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

A.D. 1928.
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Certain provisions of Public Health Acts not to apply.

186. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debenture stock or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) and section 16 (Annual return as to sinking fund) of that Act.

Mode of raising money.

187. Subject to the provisions of the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" the following sections of the Public Health Act 1875 shall extend to and apply to mortgages granted under this Act (that is to say):—

Provisions of Public Health Act 1875 as to mortgages to apply.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

188. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months or when the moneys are repaid by half-yearly instalments within six months from the date of borrowing.

Mode of payment off of money borrowed

189.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power (except money

Sinking fund.

A.D. 1928. — borrowed by the issue of stock) such sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall subject to the provisions of this Act unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which

would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation. A.D. 1928.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

A.D. 1928.
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(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be sufficient to repay the moneys in respect of which the sinking fund is formed within the prescribed period the Corporation may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister may determine.

(12) All moneys which at the date of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof shall be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

Power to re-
borrow.

190.—(1) The Corporation shall have power—

- (a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended forthwith to be repaid; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys. A.D. 1928.
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(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

191. In calculating under subsection (2) of section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 the amount which the Corporation may borrow the amount at the time of such calculation of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Corporation under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the outstanding loans contracted by the Corporation under those Acts. As to section 234 of Public Health Act 1875.

192.—(1) Notwithstanding anything contained in any other Act relating to the Corporation where the Corporation have from time to time any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Fourth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time

A.D. 1928. after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods and by the means within and by which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within one month after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to inspection by any mortgagee or other person entitled to any mortgage granted under this section during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fourth Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United

Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee. A.D. 1928.
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(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

193. Any reference in any mortgage or charge granted by the Corporation to the revenue of any undertaking of the Corporation shall be deemed to be a reference to the revenues of the Corporation. As to mortgage of revenues of Corporation.

194.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order on and after the thirty-first day of March nineteen hundred and twenty-nine the Corporation may (if they think fit) establish a fund to be called “ the consolidated loans fund ” to which shall be paid as and when they are received— Consoli- dated loans fund.

- (a) all moneys borrowed by the Corporation whether by issue of bonds stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;

A.D. 1928.

- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt; and
- (d) a sum or sums equal to the aggregate amount of all dividends and interest payable in each year on bonds stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding.

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of stock or any other securities issued by the Corporation the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation;
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; and
- (c) in the payment of dividends and interest on the bonds stock mortgages or other securities issued in the exercise of any statutory borrowing power of the Corporation and remaining outstanding.

And the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investments thereof shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all bonds and stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever. A.D. 1928.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of bonds stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

195. When under the provisions of this Act or of any other Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund redemption fund or loans fund the following provisions shall have effect with respect to the appropriate yearly sums and to the accumulations thereof (if any) required to be set apart for or paid into such sinking fund redemption fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Corporation (that is to say) :— Investment of and payments into sinking fund.

The accumulations of the said yearly sums shall be paid and provided out of the general rate fund and general rate and any interest dividends and proceeds arising from the investment of the said yearly sums and the accumulations thereof (including such annual sums and accumulations as have been provided prior to the passing of this Act) shall be paid into and form part of the general rate fund.

196. Notwithstanding anything contained in any previous enactment the Corporation may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part but not for the time being required for the purposes of any fund accumu- Use of moneys forming part of sinking and other funds.

A.D. 1928. — lated for the redemption of debt or as a reserve renewals depreciation contingent insurance or other similar fund (in this section referred to as "the lending fund") subject to the following conditions:—

- (1) The moneys so used shall be repaid to the lending fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable:

Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power:

- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power:
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

Application
of money
borrowed.

197. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

198. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister shall in each case prescribe.

A.D. 1928.

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Period for
repayment of
loans under
Municipal
Corporations
Act 1882.

199. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other documents evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 (Issue of stock) of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk or registrar of stock of the Corporation of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Evidence of
transfer or
transmission
of securities.

200. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Receipt in
case of per-
sons not sui
juris.

201. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

Interest on
mortgages
held jointly.

202. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the general rate fund.

Expenses of
execution of
Act.

203. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof

Corporation
not to re-
gard trusts.

A.D. 1928. notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register.

Appoint-
ment of
receiver.

204.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall be not less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Protection
of lender
from in-
quiry.

205. A person lending money to the Corporation shall not be bound to inquire as to the observance by the Corporation of any provisions of any Act relating to the Corporation or be bound to see to the application or be answerable for any loss mis-application or non-application of the money lent or of any part thereof.

Return to
Minister
with respect
to repay-
ment of
debt.

206.—(1) The town clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as
aforesaid or otherwise that the Corporation have failed
to pay any instalment or annual payment required to be
paid or to appropriate any sum required to be appropri-
ated or to set apart any sum required for any sinking
fund (whether such instalment or annual payment or sum
is required by any enactment relating to the statutory
borrowing power or by the Minister in virtue thereof to
be paid appropriated or set apart) or have applied any
portion of any sinking fund to any purposes other than
those authorised the Minister may by order direct that
the sum in such order mentioned not exceeding the
amount in respect of which default has been made shall
be paid or applied in the manner and by the date in such
order mentioned and the Corporation shall notify the
Minister as soon as the order is complied with and any
such order shall be enforceable by writ of mandamus to
be obtained by the Minister out of the High Court.

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(4) Any provision (other than the foregoing provi-
sions of this section) of any enactment now in force in the
borough requiring an annual return to be made to the
Minister with regard to the repayment of debt is hereby
repealed.

207.—(1) Notwithstanding anything contained in
any previous enactment all money received by the Cor-
poration on account of the revenue of any undertaking
for the time being of the Corporation from which
revenue is derived shall be carried to and shall form part
of the general rate fund and all payments and expenses
made and incurred in respect of any such undertaking
shall be paid out of that fund.

Application
of revenue
and pay-
ment of ex-
penses of
under-
takings.

(2) Any moneys which the Corporation are required
or authorised to pay or apply under any enactments
relating to the application of the revenue of any such
undertaking shall for the purposes of subsection (1) of
this section be deemed to be payments and expenses made
and incurred in respect of the undertaking to which the
said enactments respectively relate and any income
arising from the investment of any reserve funds
authorised under the said enactments shall be deemed to
be money received on account of the revenue of the under-
taking to which the said enactments respectively relate.

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(3) The Corporation may (if they think fit) apply money received by them on account of the revenue of any of the undertakings referred to in subsection (1) of this section in the construction renewal extension and improvement of the works and conveniences for the purposes of such undertakings respectively.

Separate
accounts to
be kept.

208.—(1) The Corporation shall notwithstanding the provisions of any Act or Order to the contrary keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the following undertakings of the Corporation (that is to say) the tramway undertaking and the markets undertaking (each of which is in this section separately referred to as “the undertaking”) on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) The amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain.

(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so

far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried. A.D. 1928.
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209. Section 14 (Application of revenue) of the Dudley and District Light Railways (Amendment) Order 1907 shall be read and have effect as if the words “ twenty thousand pounds ” were therein substituted for the words “ three thousand pounds ” wherever those words occur. Amendment of section 14 of Dudley and District Light Railways (Amendment) Order 1907.

210.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors appointed under the Municipal Corporations Acts Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as “ the appointed auditor.” Appointed auditors.

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 (Borough auditors) of the Municipal Corporations Act 1882 shall not apply within the borough.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein instead of the borough auditor and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

(5) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or

A.D. 1928. — expedient with respect to the accounts and any matter arising thereout or in connection therewith.

Subscriptions to local government associations and other expenses.

211.—(1) The Corporation may pay out of the general rate fund as expenses incurred by them under the Municipal Corporations Act 1882—

(a) reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

(b) the reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

(2) The Corporation may also subscribe to any charity philanthropic association or society or other associations institutions or societies rendering national or public service such sum or sums as they may from time to time think fit and may charge the amount of any such subscription to or apportion the same among all or any of their funds and revenues. Provided that the total amount subscribed by the Corporation under the provisions of this subsection shall not in any one year exceed the amount which would be produced by the levying of a general rate of one farthing in the pound.

PART X.

MISCELLANEOUS.

Power to cleanse and improve rivers and watercourses.

212.—(1) The Corporation may dredge cleanse scour and remove weeds from any river stream or watercourse in the borough which is or may be so choked or

silted up as to obstruct or impede the proper flow of water along the same and cause or render probable an overflow of the water from such river stream or watercourse on to lands adjacent thereto or to hinder the usual effectual drainage through such river stream or watercourse or to hinder or prevent the drainage of water from such lands. A.D. 1928.

(2) (a) The Corporation may also for preventing interference with the free flow of the waters of the said rivers streams and watercourses from time to time—

- (i) excavate the waterway or bed and course or any part or parts thereof respectively of any such rivers streams and watercourses;
- (ii) for the purpose of preventing the silting up of such waterways from time to time as they deem fit invert pitch straighten form and improve with such materials as they think fit or cover in and otherwise improve all or any portions of the waterway bed or course and banks of the said rivers streams and watercourses;
- (iii) construct and maintain all such walls banks arches culverts and other works in or on the side of the said rivers streams and watercourses respectively as they may deem expedient.

(b) The Corporation shall submit to the owner lessee and occupier of any lands upon which any works are intended to be constructed under this subsection plans and sections of such works for the reasonable approval of the owner lessee and occupier and if within fourteen days from the date when the same shall have been submitted the owner lessee and occupier shall not have signified in writing their approval or disapproval of such plans and sections and in the case of disapproval shall not within such period have stated the reasons for such disapproval and their requirements in relation thereto the Corporation shall be at liberty to proceed with the works without the approval of the plans and sections.

(c) If any difference shall arise between the Corporation on the one hand and the owner lessee or occupier on the other hand in relation to the plans and sections the same shall be referred to and approved by an arbitrator to be appointed by the President of the Institution

A.D. 1928. of Civil Engineers on the application of the Corporation or other party in difference.

(d) Before commencing to execute any works authorised by this subsection the Corporation except in case of emergency shall give to the owner lessee or occupier of the lands upon which the works are intended to be executed not less than three days' notice in writing of their intention to commence the same and the Corporation shall not without the consent in writing of the occupier of the lands execute any such works before six o'clock in the morning or after five o'clock in the afternoon.

(3) The Corporation shall make compensation to the owner lessee or occupier of the lands upon which any works may be constructed under this section for any damage which may be caused in the execution of such works or in the execution of the powers conferred upon the Corporation by this section to any buildings works plant gardens allotments and fields abutting upon the said rivers streams or watercourses.

(4) The Corporation shall not invert pitch cover in or otherwise deal with any portion of the waterway bed or course or the banks of any river stream or watercourse or construct any walls banks arches culverts or other works in or on the side of the same respectively in any manner which will prejudicially affect the drainage of water from lands outside the borough.

(5) The powers of this section shall not be exercised so as to injure any canal or works of the Canal Company or so as to affect detrimentally the rights of the Canal Company in relation to any river stream or watercourse by means of which the Canal Company is entitled to convey water to or from the canal of the Canal Company without the consent of the Canal Company.

(6) The powers of this section shall not be exercised so as to affect injuriously any railway of a railway company or the foundations or piers of any bridge or work forming part of such railway without the consent of such company.

Penalty for
throwing
rubbish into
streams.

213. Every person who throws or by any other means conveys or causes to be conveyed any solid matter whatsoever into any river stream or brook within the

borough so as to interfere with the due flow of such river stream or brook shall be liable to a penalty not exceeding five pounds. A.D. 1928.
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214. The Corporation may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of section 257 of the Public Health Act 1875. Expenses may be declared private improvement expenses.

215. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly. In executing works for owner Corporation liable for negligence only.

216. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part V (Streets buildings and drains) and Part VI (Infectious disease and sanitary matters) of this Act as if those purposes had been mentioned in the said section 102. Power to enter premises.

217. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part V (Streets buildings and drains) or Part VI (Infectious disease and sanitary matters) of this Act or under any Penalty on occupier refusing execution of Act.

A.D. 1928. byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the work required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such work.

General provisions as to byelaws.

218. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act.

Evidence of appointments authority &c.

219. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *primâ facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authentication and service of notices &c.

220.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

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221. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Breach of conditions of consent of Corporation.

222. All consents given by the Corporation under the provisions of this Act or of any local Act Order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Consents of Corporation to be in writing.

223. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in case of joint owners.

224. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Damages and charges to be settled by court.

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Recovery of
demands.

225. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

As to ap-
peals.

226. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Parts V or VI of this Act or by any order made by a court of summary jurisdiction under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

Several
sums in one
summons.

227. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Service of
summons on
members of
council.

228. Notwithstanding anything contained in the Second Schedule of the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of every member of the council by post by prepaid letter at the ordinary rate of postage.

Delegation
of certain
powers to
committees.

229. The powers and duties conferred and imposed upon the Corporation by Parts V and VI of this Act shall be deemed to be purposes which may (if the Corporation think fit) be regulated and managed by means of committees appointed by the Corporation in pursuance of section 22 of the Municipal Corporations Act 1882.

230. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough.

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Informa-
tions by
whom to be
laid.

231. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties
&c.

232. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Compensa-
tion how to
be deter-
mined.

233. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Powers of
Act cumu-
lative.

234. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Saving for
indictments
&c.

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Application
of section
265 of Public
Health Act
1875.

Repeal of
certain
enactments.

235. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any local enactment as if the same were re-enacted therein.

236.—(1) The Act passed in the thirty-first year of King George III and entitled “ An Act for better
“ paving cleansing lighting watching and otherwise
“ improving the town of Dudley in the county of
“ Worcester and for better supplying the said town with
“ water ” (except sections 25 to 30 both inclusive) is hereby repealed.

(2) The Provisional Order for the application of the Public Health Act 1848 to the parish of Dudley in the county of Worcester which is set forth in the schedule to an Act passed in the sixteenth year of Queen Victoria and entitled “ An Act to confirm and extend certain Pro-
“ visional Orders of the General Board of Health for
“ the Towns of Wakefield Elland Wallasey Dudley
“ Barnsley Dorchester and Welshpool ” together with so much of section 4 of that Act and so much of section 1 thereof as relates to and confirms the said Provisional Order are hereby repealed.

Judges not
disqualified.

237. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Inquiries by
Minister.

238.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Ministry of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(2) The Corporation shall pay to the Minister any expenses incurred by the Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister not exceeding five guineas a day for the services of such inspector.

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239. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

—
Crown
rights.

240. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose.

Costs of Act.

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---The SCHEDULES referred to in the
foregoing Act.

FIRST SCHEDULE.

**PART I.—LOCAL ACTS RELATING TO THE EXISTING
BOROUGH.**

Session and Chapter.	Title or Short Title.
31 Geo. III. c. lxxix.	An Act for better paving cleansing lighting watching and otherwise improving the town of Dudley in the county of Worcester and for better supplying the said town with water.
42 & 43 Vict. c. c. -	The Dudley Sewage Act 1879.
9 Edw. 7. c. xxviii. -	The Dudley Corporation Act 1909.

**PART II.—ELECTRIC LIGHTING CONFIRMATION ACT
RELATING TO THE EXISTING BOROUGH.**

Session and Chapter.	Short Title.	Order thereby confirmed.
60 & 61 Vict. c. lxiii.	The Electric Lighting Orders Confirmation (No. 3) Act 1897.	The Dudley Corporation Electric Lighting Order 1897.

SECOND SCHEDULE.

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PROPERTIES OF WHICH PART ONLY MAY BE TAKEN.

Borough.	Street Work.	Numbers on Deposited Plan.
Dudley	No. 1	3.
	No. 2	8.
	No. 3	17 to 19.
	No. 4	26.
	No. 5	4 to 11 21 to 24 34 38 to 41 51 to 53 58 to 60 62.
	No. 6	79.

THIRD SCHEDULE.

THIS INDENTURE made the twenty-third day of November one thousand nine hundred and twenty-five between The Right Honourable WILLIAM HUMBLE EARL OF DUDLEY P.C. G.C.B. G.C.V.O. (hereinafter called "the Lessor" which expression where the context so admits shall include the said Earl of Dudley's successors in title and the reversioner for the time being immediately expectant upon the term hereby created) of the one part and THE MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF DUDLEY in the county of Worcester (hereinafter called "the Lessees" which expression where the context so admits shall include the permitted assigns of the Lessees) of the other part Witnesseth as follows :—

1. In consideration of the rent and covenants on the part of the Lessees hereinafter reserved and contained the Lessor in exercise of the power in this behalf conferred upon him as tenant for life by an indenture of settlement dated the seventh day of March one thousand nine hundred and nineteen and made between the Lessor of the first part the Right Honourable William Humble Eric Ward of the second part the Right Honourable Rosemary Millicent Ward (then the Right Honourable Rosemary Millicent Leveson Gower spinster) of the third part and Sir Thomas Herbert Cochrane Troubridge baronet Sir

A.D. 1928. Gilbert Henry Claughton baronet John Tryon and George Macpherson of the fourth part and of all other powers (if any) him enabling hereby demises unto the Lessees firstly All that castle or ruin known as Dudley Castle together with the land and grounds adjoining or adjacent thereto together with Tipton Lodge the Lower Lodge in Castle Hill the houses known as numbers 7 and 7A Castle Hill situated at main entrance to the said castle and the keeper's cottage No. 2 Castle Hill (subject as regards numbers 2 7 and 7A Castle Hill to the provisions hereinafter contained) which lodges houses and cottage are now in the several occupations of Messieurs Round (Tipton Lodge) A. W. Packwood (Lower Lodge) J. S. Fellows (No. 7) Thomas Bagott (No. 7A) and J. Flavell (No. 2) all of which premises are more particularly shown on the plan respectively and annexed hereto and thereon coloured red green blue and brown And secondly full right and liberty for the Lessees their successors and assigns and all other persons authorised by them from time to time during the continuance of the term hereby created and for all purposes to pass and repass with or without horses carts carriages motor cars and other vehicles over and along the road coloured yellow and marked between the points C and D indicated on the plan hereto annexed Except and reserving unto the Lessor and the tenants or occupiers of the adjoining premises known as Priory Hall and all persons authorised by them a right of way for all purposes and at all times over all roads and pathways on or running through the demised premises and Except and reserving unto the Lessor and the tenants or occupiers of the dwelling-houses numbers 1 5 and 6 Castle Hill and of the premises known as the Earl of Dudley's "Estate Offices" and persons authorised by them a similar right of way over so much of the carriageway as leads from the main entrance of the said castle grounds to the said dwelling-houses and offices To hold the premises hereby demised unto the Lessees as from the twenty-ninth day of September one thousand nine hundred and twenty-four for the term of ninety-nine years subject however to all existing tenancies and to the right of the tenants to remove all fixtures belonging to them Paying therefor yearly during the said term hereby granted the rent of ten shillings to be paid without any deduction except for landlord's property tax so far as payable on such rent by equal half-yearly payments on the first of January and the first of July in every year such payments as have already accrued due to be made on the date hereof.

2. It is hereby agreed and declared that the Lessees shall have the following powers and liberties that is to say :—

- (i) To maintain and use the castle and grounds as an ancient monument open space or pleasure grounds (subject to the covenants and conditions hereinafter contained) and to construct suitable roads public paths and walks

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thereon and to divert lay out and alter such roads paths and walks as the Lessees may from time to time require Provided however that the Lessees shall not divert or stop up the roadway leading to the Priory Hall which roadway is shown between the points A and B marked on the plan hereunto annexed and is thereon coloured brown;

- (ii) To charge for admission to the remains of the castle or any part of the demised premises such a sum (if any) as the Lessees may consider necessary or desirable;
- (iii) To lay out lawn tennis courts (either hard or grass) bowling greens and children's playgrounds on the portions of the grounds situated at the foot of the eastern slopes of the Castle Hill and upon such other parts of the demised premises as are shown by a green colour on the said plan and for this purpose to clear and carry away trees shrubs and underwood and level such portions of the grounds where necessary;
- (iv) (a) To lop top or crop any timber trees or undergrowth now or hereafter growing upon the demised premises and to cut down fell and carry away any timber or trees which are dangerous or which hamper impede or prevent the full and free use of the demised premises for the purposes hereinbefore mentioned to the intent that the Lessees shall not except where necessary or desirable to enable them to carry out the purposes of these presents fell cut down and carry away timber or trees;
(b) To plant transplant and remove as shall from time to time be deemed necessary and expedient any trees shrubs or undergrowth;
- (v) To fall quarry bank cart away and remove any mounds hillocks or heaps of earth rubble or limestone to other parts of the demised premises for the purpose of levelling filling up and making the same and in order to strengthen make maintain and make secure foundation slopes or embankments upon the demised premises whether the same are now existing or shall hereafter be made or constructed Provided however that all work carried out under this clause shall only be performed and executed for the purpose of the more effectually using the demised premises for the purposes of these presents or to preserve or increase the advantages and amenities of the demised premises;
- (vi) To arrange special fêtes and entertainments similar to the castle fêtes which have been held on the said grounds on numerous occasions during the past 50 years;

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- (vii) To lock or close the gates of the demised premises at such hours as the Lessees shall from time to time determine provided however that they shall make such arrangements to the reasonable satisfaction of the Lessor for securing the enjoyment of the rights of way hereinbefore reserved and excepted;
- (viii) To remove at the expiration of the term hereby created or upon the sooner determination thereof all buildings structures fittings and fixtures (if any) which have been erected or placed by the Lessees upon the demised premises or upon some part thereof provided however the Lessees shall make good all damage and injury caused by such removal to the demised premises to the reasonable satisfaction of the Lessor;
- (ix) To erect provide and maintain upon all or any part of the demised premises which are hatched with red lines upon the plan hereunto annexed houses buildings and structures of a temporary or permanent character for the purpose of the Lessees providing therein or therefrom food drinks or other refreshments for the use of the public and other persons who enter the demised premises and to let or lease the said houses buildings or structures to any person or persons for the purpose of providing such refreshments.

3. And the Lessees do hereby covenant with the Lessor in manner following that is to say :—

- (a) That the Lessees will during the continuance of the term hereby granted pay the said yearly rent hereinbefore reserved without any deduction except as aforesaid And also will from time to time and at all times during the said term pay and discharge all rates taxes duties charges assessments and outgoings whatsoever (whether parliamentary parochial local or of any other description) which are now or may at any time hereafter be assessed charged or imposed upon or payable in respect of the said demised premises landlord's property tax only excepted (so far as it is payable on the said rent of ten shillings);
- (b) And also will as far as is reasonably possible preserve from injury and damage of all kinds the remains of the castle regard being had to their present condition which is that of " a ruin " and will not (except as herein specially provided for) make any additions or alterations to them or any other part of the demised premises without the consent of the Lessor which consent however shall not be unreasonably withheld;
- (c) And also repair and maintain in a good substantial state of repair all the demised premises regard being had

to their present condition and fair wear and tear and damage by fire and tempest at all times excepted Provided always that the Lessees shall not be deemed to be under any liability or obligation to maintain or to deliver up the demised premises in any better state and condition than the same are now in nor be under any liability to repair re-instate or make good any damage caused to the demised premises by subsidence of old limestone or other workings under the demised premises nor be under any liability to repair and maintain any caves caverns or workings in under or upon the demised premises and it is hereby agreed that the existing breaches in the boundary walls may be closed by means of suitable unclimbable fencing or in some other efficient manner as shall be determined by the Lessees;

- (d) And also will from time to time make and enforce proper regulations for preserving orderly conduct in the use of the demised premises by the public and all persons who may be allowed on the demised premises and in particular will prevent shouting the playing of musical instruments and the making of any undue noise Provided however that nothing herein contained shall be deemed to prevent any music playing and singing which may be provided by or under the direction of the Lessees;
- (e) And also will not erect on the demised premises or any part thereof any sheds tents glass-houses new buildings or erections of any sort without the consent of the Lessor or his agent for the time being Provided however that this clause shall not apply to the houses buildings or structures referred to in clause 2 (ix) hereof;
- (f) And also will not promote permit or allow fairs fêtes roundabouts swings rodeos circuses open air meetings or any similar form of entertainment or meeting (other than the castle fêtes or other entertainments hereinbefore mentioned in clause 2 (vi)) without first obtaining the consent of the Lessor and will not do or allow anything whether particularly above mentioned or not which may be or become a nuisance or annoyance to the Lessor or his tenants;
- (g) And also will subject as hereinbefore mentioned preserve the sylvan character of the castle grounds and the trees and herbage thereon and will also allocate set aside and fence off as a bird sanctuary the part of the demised premises coloured blue on the said plan or such other area as may from time to time be mutually agreed between the Lessor and the Lessees;

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- (h) And also will use and enjoy the demised premises in accordance with the power and liberties hereinbefore mentioned and for no other purpose except with the written consent of the Lessor or his agent for the time being which consent however shall not be unreasonably withheld;
- (i) And also will not without a like written consent assign sublet or part with the possession of the demised premises or any part thereof Provided however that nothing herein contained shall be deemed to prevent the Lessees letting the said lodges houses and cottage or any of them to officers of the Lessees or permitting their officers to occupy the same or letting or leasing the refreshment places referred to in paragraph 2 (ix) hereof;
- (j) And also will upon the execution of these presents pay to the Lessor a sum equal to the wages at the rate of one pound two shillings and sixpence per week which the Lessor has paid to John S. Fellows since the twenty-ninth September one thousand nine hundred and twenty-four in respect of his work of keeping maintaining and watching the demised premises and the rates and taxes which have been paid in respect of the demised premises since the twenty-ninth day of September one thousand nine hundred and twenty-four;
- (k) And also will permit Joseph Flavell to occupy No. 2 Castle Hill (part of the demised premises) so long as he shall desire to live therein provided the said Joseph Flavell shall cease to sell and provide refreshments on the part of the demised premises occupied by him if and when the Lessees call upon him so to do;
- (l) And will at the expiration of the said term hereby granted quietly yield up the demised premises in a state and condition reasonably in accordance with the covenants afore mentioned.

4. And the Lessor hereby covenants with the Lessees that the Lessees paying the rent hereby reserved and performing and observing the several covenants conditions and agreements herein contained and on their part to be performed and observed shall and may peaceably and quietly hold and enjoy the said premises hereby demised during the term hereby granted without any lawful interruption or disturbance from or by the Lessor or any person or persons claiming or in trust for him.

5. When and so often as any default shall be made in payment of the rent hereby reserved or if there shall be a breach of any of the covenants by the Lessees herein contained then it shall be lawful for the Lessor at any time thereafter upon the demised

premises or any part thereof in the name of the whole to re-enter and the same and every part thereof to recover repossess and enjoy as in his former estate as if these presents had never been made. A.D. 1928.
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6. Notwithstanding anything hereinbefore contained the houses known as Nos. 7 and 7A Castle Hill and now in the occupation of J. S. Fellows and Thomas Bagott shall not be included as part of the demised premises unless within a period of three months from the date hereof the Lessees shall have taken the said J. S. Fellows and Thomas Bagott into their employment and granted them a tenancy of the said houses at a rent (so far as the said Thomas Bagott is concerned) not exceeding the rents now paid by them and in terms similar to those on which they now hold the said houses. Whereupon No. 7 and 7A Castle Hill shall be deemed to be included in the demised premises for the remainder of the term hereby created. Provided however that this clause shall be deemed to be of no force and effect as regards No. 7 and 7A Castle Hill respectively if within the said period of three months the said J. S. Fellows and Thomas Bagott or either of them shall die or refuse to enter the employment of the Lessees upon reasonable terms of service.

In witness whereof the Lessor has hereunto set his hand and seal and the Lessees have caused their common seal to be hereunto affixed the day and year first above written.

Signed sealed and delivered by
the above named William
Humble Earl of Dudley by
his attorney Ralph Cecil
Leach in the presence of—

(Sd.) DUDLEY
by his attorney
Ralph C. Leach.

Seal.

(Sd.) FRANK H. MARCH
Clerk to Ralph C. Leach & Co.
91 Bishopsgate E.C.
Solicitors.

The common seal of the mayor
aldermen and burgesses of the
county borough of Dudley
was hereunto affixed in the
presence of—

(Sd.) GEOFFREY KNOWLES
Town Clerk.

Seal.

A.D. 1928.

FOURTH SCHEDULE.

FORM OF MORTGAGE.

BOROUGH OF DUDLEY.

By virtue of the Dudley Corporation Act 1928 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Dudley (hereinafter referred to as "the Corporation") in consideration of the sum of pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of nineteen hundred and until payment of the principal sum such interest to be paid half-yearly on the day of and the day of in each year And it is hereby agreed that the principal sum shall be repaid at the town hall in the said borough [(subject as hereinafter provided) on the day of nineteen hundred and or (if not repaid on that date) at any time thereafter on the expiration of three calendar months' notice in writing by the Corporation to the mortgagee or by the mortgagee to the Corporation] [by]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the town clerk for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be

incorporated herewith and shall operate and take effect as though they had been originally inserted herein. A.D. 1928.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this
day of _____ nineteen hundred and

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____ consenting
the within-mentioned time for repayment of the within-men-
tioned principal sum of _____ is
hereby extended to the _____ day of
_____ nineteen hundred and _____ [and
the interest to be paid thereon on and from the
day of _____ nineteen hundred and
_____ is hereby declared to be at
the rate of _____ per centum per annum].

Dated this _____ day of
nineteen hundred and _____

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] _____ [of
_____] in consideration of the
sum of _____ pounds paid to me by
_____ of
(hereinafter referred to as "the transferee") do hereby transfer
to the transferee [his] executors administrators and assigns [the
within-written security] [the mortgage number
_____ of the revenues of the mayor aldermen
and burgesses of the borough of Dudley bearing date the
_____ day of _____] and
all my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution
hereof and I the transferee for myself my executors adminis-
trators and assigns do hereby agree to take the said mortgage
security subject to the same conditions.

Dated this _____ day of
nineteen hundred and _____

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FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
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